DIRECTIVE

ISO DIR 1

Sixteenth edition

ISO/IEC Directives —

Part 1:
Procedures for the technical work

Directives ISO/IEC —

Partie 1: Procédures pour les travaux techniques

Reference number
ISO DIR 1:2020(E)

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Published in Switzerland

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Foreword

The **ISO/IEC Directives** are published in two parts:

— Part 1: Procedures for the technical work

— Part 2: Principles and rules for the structure and drafting of ISO and IEC documents

Furthermore, the International Organization for Standardization (ISO), the International Electrotechnical Commission (IEC) and ISO/IEC Joint Technical Committee (JTC) 1 have published independent supplements to Part 1, which include procedures that are not common.

This part sets out the procedures to be followed within ISO and the IEC in carrying out their technical work: primarily the development and maintenance of International Standards through the activities of technical committees and their subsidiary bodies.

ISO, IEC and ISO/IEC JTC 1 provide additional guidance and tools to all those concerned with the preparation of technical documents on their respective websites (https://www.iso.org/iso/standards_development/processes_and_procedures/iso_iec_directives_and_iso_supplement.htm; https://www.iec.ch/members_experts/refdocs/ and http://www.jtc1.org/).

This sixteenth edition incorporates changes agreed by the respective technical management boards since publication of the fourteenth edition in 2018. Procedures which are not common to all the ISO/IEC Directives are published separately in the ISO Supplement (also referred to as the Consolidated ISO Supplement), the IEC Supplement or the ISO/IEC JTC 1 Supplement, respectively. The Supplements are to be used in conjunction with this document.

The following clauses have been modified with respect to the previous edition: Foreword, 1.9.2, 1.12.1, 1.12.2, 1.15.1, 1.17, 2.8.1, 2.14.2, 4.2.2.1, Annex A, Annex B, Annex F, Annex L, and Annex M. The track changes version of this sixteenth edition should be consulted for the details of the changes made.

These procedures have been established by ISO and IEC in recognition of the need for International Standards to be cost-effective and timely, as well as widely recognized and generally applied. In order to attain these objectives, the procedures are based on the following concepts.

a) **Current technology and project management**

Within the framework of these procedures, the work may be accelerated and the task of experts and secretariats facilitated both by current technology (e.g. IT tools) and project management methods.

b) **Consensus**

Consensus, which requires the resolution of substantial objections, is an essential procedural principle and a necessary condition for the preparation of International Standards that will be accepted and widely used. Although it is necessary for the technical work to progress speedily, sufficient time is required before the approval stage for the discussion, negotiation and resolution of significant technical disagreements.

For further details on the principle of "consensus", see 2.5.6.

c) **Discipline**

National Bodies need to ensure discipline with respect to deadlines and timetables in order to avoid long and uncertain periods of "dead time". Similarly, to avoid re-discussion, National Bodies have the responsibility of ensuring that their technical standpoint is established taking account of all interests concerned at national level, and that this standpoint is made clear at an early stage of the work rather than, for example, at the final (approval) stage. Moreover, National Bodies need to recognize that substantial comments tabled at meetings are counter-productive, since no opportunity is available for other delegations to carry out the necessary consultations at home, without which rapid achievement of consensus will be difficult.

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d) **Cost-effectiveness**

These procedures take account of the total cost of the operation. The concept of "total cost" includes direct expenditure by National Bodies, expenditure by the offices in Geneva (funded mainly by the dues of National Bodies), travel costs and the value of the time spent by experts in working groups and committees, at both national and international level.

Terminology used in this document

NOTE 1 Wherever appropriate in this document, for the sake of brevity the following terminology has been adopted to represent similar or identical concepts within ISO and IEC.

Term	ISO	IEC
National Body	Member Body (MB)	National Committee (NC)
technical management board (TMB)	Technical Management Board (ISO/TMB)	Standardization Management Board (SMB)
Chief Executive Officer (CEO)	Secretary-General	General Secretary
office of the CEO	Central Secretariat (CS)	Central Office (CO)
council board	Council	Council Board (CB)
advisory group	Technical Advisory Group (TAG)	Advisory Committee
secretary (of a committee or subcommittee)	Committee manager	Secretary
For other concepts, ISO/IEC Guide 2 applies.		

NOTE 2 In addition the following abbreviations are used in this document.

JTAB Joint Technical Advisory Board

JCG Joint Coordination Group

JPC Joint Project Committee

JTC Joint Technical Committee

JWG joint working group

TC technical committee

SC Subcommittee

PC project committee

WG working group

PWI preliminary work item

NP new work item proposal

WD working draft

CD committee draft

DIS draft International Standard (ISO)

CDV committee draft for vote (IEC)

FDIS final draft International Standard

PAS Publicly Available Specification

TS Technical Specification

TR Technical Report

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ISO/IEC Directives —

Part 1:
Procedures for the technical work

1 Organizational structure and responsibilities for the technical work

1.1 Role of the technical management board

The technical management board of the respective organization is responsible for the overall management of the technical work and in particular for:

a) establishment of technical committees;

b) appointment of chairs of technical committees;

c) allocation or re-allocation of secretariats of technical committees and, in some cases, subcommittees;

d) approval of titles, scopes and programmes of work of technical committees;

e) ratification of the establishment and dissolution of subcommittees by technical committees;

f) allocation of priorities, if necessary, to particular items of technical work;

g) coordination of the technical work, including assignment of responsibility for the development of standards regarding subjects of interest to several technical committees, or needing coordinated development; to assist it in this task, the technical management board may establish advisory groups of experts in the relevant fields to advise it on matters of basic, sectoral and cross-sectoral coordination, coherent planning and the need for new work;

h) monitoring the progress of the technical work with the assistance of the office of the CEO, and taking appropriate action;

i) reviewing the need for, and planning of, work in new fields of technology;

j) maintenance of the ISO/IEC Directives and other rules for the technical work;

k) consideration of matters of principle raised by National Bodies, and of appeals concerning decisions on new work item proposals, on committee drafts, on enquiry drafts or on final draft International Standards.

NOTE 1 Explanations of the terms “new work item proposal”, “committee draft”, “enquiry draft” and “final draft International Standard” are given in Clause 2.

NOTE 2 For detailed information about the role and responsibilities of the ISO technical management board, see the Terms of reference of the TMB — https://www.iso.org/committee/4882545.html and for the IEC see https://www.iec.ch/dyn/www/f?p=103:47:0::::FSP_ORG_ID,FSP_LANG_ID:3228,25.

1.2 Advisory groups to the technical management board

1.2.1 A group having advisory functions in the sense of 1.1 g) may be established

a) by one of the technical management boards;

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b) jointly by the two technical management boards.

NOTE In IEC certain such groups are designated as Advisory Committees.

1.2.2 A proposal to establish such a group shall include recommendations regarding its terms of reference and constitution, bearing in mind the requirement for sufficient representation of affected interests while at the same time limiting its size as far as possible in order to ensure its efficient operation. For example, it may be decided that its members be only the chairs and secretaries of the technical committees concerned. In every case, the TMB(s) shall decide the criteria to be applied and shall appoint the members.

Any changes proposed by the group to its terms of reference, composition or, where appropriate, working methods shall be submitted to the technical management boards for approval.

1.2.3 The tasks allocated to such a group may include the making of proposals relating to the drafting or harmonization of publications (in particular International Standards, Technical Specifications, Publicly Available Specifications and Technical Reports), but shall not include the preparation of such documents unless specifically authorized by the TMB(s).

1.2.4 Any document being prepared with a view to publication shall be developed in accordance with the procedural principles given in Annex A.

1.2.5 The results of such a group shall be presented in the form of recommendations to the TMB(s). The recommendations may include proposals for the establishment of a working group (see 1.12.6) or a joint working group (see 1.12) for the preparation of publications. Such working groups shall operate within the relevant technical committee, if any.

1.2.6 The internal documents of a group having advisory functions shall be distributed to its members only, with a copy to the office(s) of the CEO(s).

1.2.7 Such a group shall be disbanded once its specified tasks have been completed, or if it is subsequently decided that its work can be accomplished by normal liaison mechanisms (see 1.16).

1.3 Joint technical work

1.3.1 Joint Technical Advisory Board (JTAB)

The JTAB has the task of avoiding or eliminating possible or actual overlapping in the technical work of ISO and IEC and acts when one of the two organizations feels a need for joint planning. The JTAB deals only with those cases that it has not been possible to resolve at lower levels by existing procedures. (See Annex B.) Such cases may cover questions of planning and procedures as well as technical work.

Decisions of the JTAB are communicated to both organizations for immediate implementation. They shall not be subject to appeal for at least 3 years.

1.3.2 Joint Technical Committees (JTC) and Joint Project Committees (JPC)

1.3.2.1 JTC and JPC may be established by a common decision of the ISO/TMB and IEC/SMB, or by a decision of the JTAB.

1.3.2.2 For JPC, one organization has the administrative responsibility. This shall be decided by mutual agreement between the two organizations.

Participation is based on the one member/country, one vote principle.

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Where two National Bodies in the same country elect to participate in a JPC then one shall be identified as having the administrative responsibility. The National Body with the administrative responsibility has the responsibility of coordinating activities in their country, including the circulation of documents, commenting and voting.

Otherwise the normal procedures for project committees are followed (see 1.10).

1.4 Role of the Chief Executive Officer

The Chief Executive Officer of the respective organization is responsible, *inter alia*, for implementing the ISO/IEC Directives and other rules for the technical work. For this purpose, the office of the CEO arranges all contacts between the technical committees, the council board and the technical management board.

Deviations from the procedures set out in the present document shall not be made without the authorization of the Chief Executive Officers of ISO or IEC, or the ISO/IEC Joint Technical Advisory Board (JTAB), or the technical management boards for deviations in the respective organizations.

1.5 Establishment of technical committees

1.5.1 Technical committees are established and dissolved by the technical management board.

1.5.2 The technical management board may transform an existing subcommittee into a new technical committee, following consultation with the technical committee concerned.

1.5.3 A proposal for work in a new field of technical activity which appears to require the establishment of a new technical committee may be made in the respective organization by

— a National Body;

— a technical committee or subcommittee;

— a project committee;

— a policy level committee;

— the technical management board;

— the Chief Executive Officer;

— a body responsible for managing a certification system operating under the auspices of the organization;

— another international organization with National Body membership.

1.5.4 The proposal shall be made using the appropriate form (see Annex SJ in the Consolidated ISO Supplement to the ISO/IEC Directives and https://www.iec.ch/standardsdev/resources/docpreparation/forms_templates/), which covers

a) the proposer;

b) the subject proposed;

c) the scope of the work envisaged and the proposed initial programme of work;

d) a justification for the proposal;

e) if applicable, a survey of similar work undertaken in other bodies;

f) any liaisons deemed necessary with other bodies.

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For additional informational details to be included in the proposals for new work, see Annex C. The form shall be submitted to the office of the CEO.

1.5.5 The office of the CEO shall ensure that the proposal is properly developed in accordance with ISO and IEC requirements (see Annex C) and provides sufficient information to support informed decision making by National Bodies. The office of the CEO shall also assess the relationship of the proposal to existing work, and may consult interested parties, including the technical management board or committees conducting related existing work. If necessary, an ad hoc group may be established to examine the proposal.

Following its review, the office of the CEO may decide to return the proposal to the proposer for further development before circulation for voting. In this case, the proposer shall make the changes suggested or provide justification for not making the changes. If the proposer does not make the changes and requests that its proposal be circulated for voting as originally presented, the technical management board will decide on appropriate action. This could include blocking the proposal until the changes are made or accepting that it be balloted as received.

In all cases, the office of the CEO may also include comments and recommendations to the proposal form.

For details relating to justification of the proposal, see Annex C.

Proposers are strongly encouraged to conduct informal consultations with other National Bodies in the preparation of proposals.

1.5.6 The proposal shall be circulated by the office of the CEO to all National Bodies of the respective organization (ISO or IEC), asking whether or not they

a) support the establishment of a new technical committee providing a statement justifying their decision ("justification statement"), and

b) intend to participate actively (see 1.7.1 in the work of the new technical committee.

The proposal shall also be submitted to the other organization (IEC or ISO) for comment and for agreement (see Annex B).

The replies to the proposal shall be made using the appropriate form within 12 weeks after circulation. Regarding a) above, if no such statement is provided, the positive or negative vote of a National Body will not be registered and considered.

1.5.7 The technical management board evaluates the replies and either

— decides the establishment of a new technical committee, provided that

  a) a 2/3 majority of the National Bodies voting are in favour of the proposal, and

  b) at least 5 National Bodies who voted in favour expressed their intention to participate actively,

and allocates the secretariat (see 1.9.1), or

— assigns the work to an existing technical committee, subject to the same criteria of acceptance.

1.5.8 Technical committees shall be numbered in sequence in the order in which they are established. If a technical committee is dissolved, its number shall not be allocated to another technical committee.

1.5.9 As soon as possible after the decision to establish a new technical committee, the necessary liaisons shall be arranged (see 1.15 to 1.17).

1.5.10 A new technical committee shall agree on its title and scope as soon as possible after its establishment, preferably by correspondence.

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The scope is a statement precisely defining the limits of the work of a technical committee.

The definition of the scope of a technical committee shall begin with the words “Standardization of …” or “Standardization in the field of …” and shall be drafted as concisely as possible.

For recommendations on scopes, see Annex J.

The agreed title and scope shall be submitted by the Chief Executive Officer to the technical management board for approval.

1.5.11 The technical management board or a technical committee may propose a modification of the latter’s title and/or scope. The modified wording shall be established by the technical committee for approval by the technical management board.

1.5.12 “Stand-by” – a technical committee or subcommittee is said to be in a “stand-by” status when it has no tasks on its work programme but retains its title, scope and secretariat so that it can be reactivated should a new task be assigned to it.

The decision to put a committee on stand-by or to reactivate it is taken by the technical management board on a proposal from the committee in question.

1.6 Establishment of subcommittees

1.6.1 Subcommittees are established and dissolved by a 2/3 majority decision of the P-members of the parent committee voting, subject to ratification by the technical management board. A subcommittee may be established only on condition that a National Body has expressed its readiness to undertake the secretariat.

1.6.2 At the time of its establishment, a subcommittee shall comprise at least 5 members of the parent technical committee having expressed their intention to participate actively (see 1.7.1) in the work of the subcommittee.

1.6.3 Subcommittees of a technical committee shall be designated in sequence in the order in which they are established. If a subcommittee is dissolved, its designation shall not be allocated to another subcommittee, unless the dissolution is part of a complete restructuring of the technical committee.

1.6.4 The title and scope of a subcommittee shall be defined by the parent technical committee and shall be within the defined scope of the parent technical committee.

1.6.5 The secretariat of the parent technical committee shall inform the office of the CEO of the decision to establish a subcommittee, using the appropriate form. The office of the CEO shall submit the form to the technical management board for ratification of the decision.

1.6.6 As soon as possible after ratification of the decision to establish a new subcommittee, any liaisons deemed necessary with other bodies shall be arranged (see 1.15 to 1.17).

1.7 Participation in the work of technical committees and subcommittees

1.7.1 All National Bodies have the right to participate in the work of technical committees and subcommittees.

In order to achieve maximum efficiency and the necessary discipline in the work, each National Body shall clearly indicate to the office of the CEO, with regard to each technical committee or subcommittee, if it intends

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— to participate actively in the work, with an obligation to vote on all questions formally submitted for voting within the technical committee or subcommittee, on new work item proposals, enquiry drafts and final draft International Standards, and to contribute to meetings (**P-members**), or

— to follow the work as an observer, and therefore to receive committee documents and to have the right to submit comments and to attend meetings (**O-members**).

A National Body may choose to be neither P-member nor O-member of a given committee, in which case it will have neither the rights nor the obligations indicated above with regard to the work of that committee. Nevertheless, all National Bodies irrespective of their status within a technical committee or subcommittee have the right to vote on enquiry drafts (see 2.6) and on final draft International Standards (see 2.7).

National Bodies have the responsibility to organize their national input in an efficient and timely manner, taking account of all relevant interests at their national level.

1.7.2 Membership of a subcommittee is open to any National Body, regardless of their membership status in the parent technical committee.

Members of a technical committee shall be given the opportunity to notify their intention to become a P- or O-member of a subcommittee at the time of its establishment.

Membership of a technical committee does not imply automatic membership of a subcommittee; National Bodies shall notify their intended status in each subcommittee.

1.7.3 A National Body may, at any time, begin or end membership or change its membership status in any technical committee or subcommittee in IEC by informing the office of the CEO and the secretariat of the committee concerned, and in ISO by direct input via the Global Directory, subject to the requirements of clauses 1.7.4 and 1.7.5.

1.7.4 A technical committee or subcommittee secretariat shall notify the Chief Executive Officer if a P-member of that technical committee or subcommittee

— has been persistently inactive and has failed to contribute to 2 successive technical committee/subcommittee meetings, either by direct participation or by correspondence and has failed to appoint any experts to the technical work, or

— In IEC:
Has failed to vote on questions formally submitted for voting within the technical committee or subcommittee (see 1.7.1).

— In ISO:
has failed to vote on over 20 % (and at least 2) of the questions formally submitted for voting on the committee internal balloting (CIB) within the technical committee or subcommittee over one calendar year (see 1.7.1).

Upon receipt of such a notification, the Chief Executive Officer shall remind the National Body of its obligation to take an active part in the work of the technical committee or subcommittee. In the absence of a satisfactory response to this reminder, and upon persistent continuation of the above articulated shortcomings in required P-member behaviour, the National Body shall without exception automatically have its status changed to that of O-member. A National Body having its status so changed may, after a period of 12 months, indicate to the Chief Executive Officer that it wishes to regain P-membership of the committee, in which case this shall be granted.

NOTE This clause does not apply to the development of Guides.

1.7.5 If a P-member of a technical committee or subcommittee fails to vote on an enquiry draft or final draft International Standard prepared by the respective committee, or on a systematic review ballot for a deliverable under the responsibility of the committee, the Chief Executive Officer shall remind the

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National Body of its obligation to vote. In the absence of a satisfactory response to this reminder, the National Body shall automatically have its status changed to that of O-member. A National Body having its status so changed may, after a period of 12 months, indicate to the Chief Executive Officer that it wishes to regain P-membership of the committee, in which case this shall be granted.

NOTE This clause does not apply to the development of Guides.

1.8 Chairs of technical committees and subcommittees

1.8.1 Appointment

Chairs of technical committees shall be nominated by the secretariat of the technical committee and approved by the technical management board, for a maximum period of 6 years, or for such shorter period as may be appropriate. Extensions are allowed, up to a cumulative maximum of 9 years.

Chairs of subcommittees shall be nominated by the secretariat of the subcommittee and approved by the technical committee for a maximum period of 6 years, or for such shorter period as may be appropriate. Extensions are allowed, up to a cumulative maximum of 9 years. Approval criterion for both appointment and extension is a 2/3 majority vote of the P-members of the technical committee.

Secretariats of technical committees or subcommittees may submit nominations for new chairs up to one year before the end of the term of existing chairs. Chairs appointed one year before shall be designated as the “chair elect” of the committee in question. This is intended to provide the chair elect an opportunity to learn before taking over as chair of a committee.

1.8.2 Responsibilities

The chair of a technical committee is responsible for the overall management of that technical committee, including any subcommittees and working groups.

The chair of a technical committee or subcommittee shall

a) act in a purely international capacity, divesting him- or herself of a national position; thus s/he cannot serve concurrently as the delegate of a National Body in his or her own committee;

b) guide the secretary of that technical committee or subcommittee in carrying out his or her duty;

c) conduct meetings with a view to reaching agreement on committee drafts (see 2.5);

d) ensure at meetings that all points of view expressed are adequately summed up so that they are understood by all present;

e) ensure at meetings that all decisions are clearly formulated and made available in written form by the secretary for confirmation during the meeting;

f) take appropriate decisions at the enquiry stage (see 2.6);

g) advise the technical management board on important matters relating to that technical committee via the technical committee secretariat. For this purpose s/he shall receive reports from the chairs of any subcommittees via the subcommittee secretariats;

h) ensure that the policy and strategic decisions of the technical management board are implemented in the committee;

i) ensure the establishment and ongoing maintenance of a strategic business plan covering the activities of the technical committee and all groups reporting to the technical committee, including all subcommittees;

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j) ensure the appropriate and consistent implementation and application of the committee's strategic business plan to the activities of the technical committee's or subcommittee's work programme;

k) assist in the case of an appeal against a committee decision.

In case of unforeseen unavailability of the chair at a meeting, a session chair may be elected by the participants.

SC chairs shall attend meetings of the parent committee as required and may participate in the discussion, but do not have the right to vote. In exceptional circumstances, if a chair is prevented from attending, he or she shall delegate the secretary (or in ISO and IEC, another representative) to represent the subcommittee. In the case where no representative from the SC can attend, a written report shall be provided.

1.9 Secretariats of technical committees and subcommittees

1.9.1 Allocation

The secretariat of a technical committee shall be allocated to a National Body by the technical management board.

The secretariat of a subcommittee shall be allocated to a National Body by the parent technical committee. However, if two or more National Bodies offer to undertake the secretariat of the same subcommittee, the technical management board shall decide on the allocation of the subcommittee secretariat.

For both technical committees and subcommittees, the secretariat shall be allocated to a National Body only if that National Body

a) has indicated its intention to participate actively in the work of that technical committee or subcommittee, and

b) has accepted that it will fulfil its responsibilities as secretariat and is in a position to ensure that adequate resources are available for secretariat work (see Clause D.2).

Once the secretariat of a technical committee or subcommittee has been allocated to a National Body, the latter shall appoint a qualified individual as secretary (see Clause D.1 and Clause D.3).

1.9.2 Responsibilities

The National Body to which the secretariat has been allocated shall ensure the provision of technical and administrative services to its respective technical committee or subcommittee.

The secretariat is responsible for monitoring, reporting, and ensuring active progress of the work, and shall use its utmost endeavour to bring this work to an early and satisfactory conclusion. These tasks shall be carried out as far as possible by correspondence.

The secretariat is responsible for ensuring that the ISO/IEC Directives and the decisions of the technical management board are followed.

A secretariat shall act in a purely international capacity, divesting itself of a national point of view.

The secretariat is responsible for the following to be executed in a timely manner:

a) Working documents:

   1) Preparation of committee drafts, arranging for their distribution and the treatment of the comments received;

   2) Preparation of enquiry drafts and text for the circulation of the final draft International Standards or publication of International Standards;

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3) Ensuring the equivalence of the English and French texts, if necessary with the assistance of other National Bodies that are able and willing to take responsibility for the language versions concerned. (See also 1.11 and the respective Supplements to the ISO/IEC Directives);

b) Project management

1) Assisting in the establishment of priorities and target dates for each project;

2) Notifying the names, etc. of all working group and maintenance team convenors and project leaders to the office of the CEO;

3) Proposing proactively the publication of alternative deliverables or cancellation of projects that are running significantly overtime, and/or which appear to lack sufficient support;

c) Meetings (see also Clause 4), including:

1) Establishment of the agenda and arranging for its distribution;

2) Arranging for the distribution of all documents on the agenda, including reports of working groups, and indicating all other documents which are necessary for discussion during the meeting (see Clause E.5);

3) Regarding the decisions (also referred to as resolutions) taken in a meeting:

— ensuring that the decisions endorsing working groups recommendations contain the specific elements being endorsed;

— making the decisions available in writing for confirmation during the meeting (see Clause E.5); and

— posting the decisions within 48 hours after the meeting in the committee's electronic folder.

4) Preparation of the minutes of meetings to be circulated within 4 weeks after the meeting;

5) Preparation of reports to the technical management board (TC secretariat), in the IEC within 4 weeks after the meeting, or to the parent committee (SC secretariat);

6) In case of unforeseen unavailability of the secretary at a meeting (if the Secretariat is unable to provide a replacement), an acting secretary may be appointed by the committee for the meeting.

d) Decisions

The committee secretariat shall ensure that all decisions taken by the committee, whether at a plenary meeting or by correspondence, are documented and traceable through committee resolutions or numbered documents reporting the results of a committee decision;

e) Advising

Providing advice to the chair, project leaders, and convenors on procedures associated with the progression of projects.

In all circumstances, each secretariat shall work in close liaison with the chair of its technical committee or subcommittee.

The secretariat of a technical committee shall maintain close contact with the office of the CEO and with the members of the technical committee regarding its activities, including those of its subcommittees and working groups.

The secretariat of a subcommittee shall maintain close contact with the secretariat of the parent technical committee and as necessary with the office of the CEO. It shall also maintain contact with the members of the subcommittee regarding its activities, including those of its working groups.

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The secretariat of a technical committee or subcommittee shall update in conjunction with the office of the CEO the record of the status of the membership of the committee.

1.9.3 Change of secretariat of a technical committee

If a National Body wishes to relinquish the secretariat of a technical committee, the National Body concerned shall immediately inform the Chief Executive Officer, giving a minimum of 12 months' notice. The technical management board decides on the transfer of the secretariat to another National Body.

If the secretariat of a technical committee persistently fails to fulfil its responsibilities as set out in these procedures, the Chief Executive Officer or a National Body may have the matter placed before the technical management board, which may review the allocation of the secretariat with a view to its possible transfer to another National Body.

1.9.4 Change of secretariat of a subcommittee

If a National Body wishes to relinquish the secretariat of a subcommittee, the National Body concerned shall immediately inform the secretariat of the parent technical committee, giving a minimum of 12 months' notice.

If the secretariat of a subcommittee persistently fails to fulfil its responsibilities as set out in these procedures, the Chief Executive Officer or a National Body may have the matter placed before the parent technical committee, which may decide, by majority vote of the P-members, that the secretariat of the subcommittee should be re-allocated.

In either of the above cases an enquiry shall be made by the secretariat of the technical committee to obtain offers from other P-members of the subcommittee for undertaking the secretariat.

If two or more National Bodies offer to undertake the secretariat of the same subcommittee or if, because of the structure of the technical committee, the re-allocation of the secretariat is linked with the re-allocation of the technical committee secretariat, the technical management board decides on the re-allocation of the subcommittee secretariat. If only one offer is received, the parent technical committee itself proceeds with the appointment.

1.10 Project committees

Project committees are established by the technical management board to prepare individual standards not falling within the scope of an existing technical committee.

NOTE Such standards carry one reference number but may be subdivided into parts.

Procedures for project committees are given in Annex K.

Project committees wishing to be transformed into a technical committee shall follow the process for the establishment of a new technical committee (see 1.5).

1.11 Editing committees

It is recommended that committees establish one or more editing committees for the purpose of updating and editing committee drafts, enquiry drafts and final draft International Standards and for ensuring their conformity to the ISO/IEC Directives, Part 2 (see also 2.6.6).

Such committees should comprise at least

— one technical expert of English mother tongue and having an adequate knowledge of French;

— one technical expert of French mother tongue and having an adequate knowledge of English;

— the project leader (see 2.1.8).

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The project leader and/or secretary may take direct responsibility for one of the language versions concerned.

Editing committees shall meet when required by the respective technical committee or subcommittee secretariat for the purpose of updating and editing drafts which have been accepted by correspondence for further processing.

Editing committees shall be equipped with means of processing and providing texts electronically (see also 2.6.6).

1.12 Working groups

1.12.1 Technical committees or subcommittees may establish, by decision of the committee, working groups for specific tasks (see 2.2, 2.4 and 2.6). A working group operates by consensus, reports and gives recommendations, if any, to its parent committee through a convenor appointed by the parent committee.

Working group convenors shall be appointed by the committee for up to three-year terms ending at the next plenary session of the parent committee following the term. Such appointments shall be confirmed by the National Body (or liaison organization). The convenor may be reappointed for additional terms of up to three-years. There is no limit to the number of terms.

Responsibility for any changes of convenors rests with the committee and not with the National Body (or liaison organization).

The convenor may be supported by a secretariat, as needed.

A working group comprises a restricted number of experts individually appointed by the P-members, A-liaisons of the parent committee and C-liaison organizations, brought together to deal with the specific task allocated to the working group. The experts act in a personal capacity and not as the official representative of the P-member or A-liaison organization (see 1.17) by which they have been appointed with the exception of those appointed by C-liaison organizations (see 1.17). However, it is recommended that they keep close contact with that P-member or organization in order to inform them about the progress of the work and of the various opinions in the working group at the earliest possible stage.

It is recommended that working groups be reasonably limited in size. The technical committee or subcommittee may therefore decide upon the maximum number of experts appointed by each P-member and liaison organizations.

Once the decision to set up a working group has been taken, P-members and A- and C-liaison organizations shall be officially informed in order to appoint expert(s).Working groups shall be numbered in sequence in the order in which they are established.

When a committee has decided to set up a working group, the convenor or acting convenor shall immediately be appointed and shall arrange for the first meeting of the working group to be held within 12 weeks. This information shall be communicated immediately after the committee's decision to the P-members of the committee and A- and C-liaison organizations, with an invitation to appoint experts within 6 weeks. Additional projects may be assigned, where appropriate, to existing working groups.

1.12.2 The composition of the working group is defined in the ISO Global Directory (GD) or in the IEC Expert Management System (EMS) as appropriate. Experts not registered to a working group in the ISO GD or the IEC EMS respectively, shall not participate in its work. Convenors may invite a specific guest to participate in a single meeting and shall notify the guest's National Body of the invitation.

1.12.3 Persistently inactive experts, meaning absence of contributions through attendance to working group meetings or by correspondence shall be removed, by the office of the CEO at the request of the technical committee or sub-committee secretary, from working groups after consultation with the P-member.

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1.12.4 On completion of its task(s) — normally at the end of the enquiry stage (see 2.6) of its last project — the working group shall be disbanded by decision of the committee, the project leader remaining with consultant status until completion of the publication stage (see 2.8).

1.12.5 Distribution of the internal documents of a working group and of its reports shall be carried out in accordance with procedures described in the respective Supplements of the ISO/IEC Directives.

1.12.6 In special cases a joint working group (JWG) may be established to undertake a specific task in which more than one ISO and/or IEC technical committee or subcommittee is interested. Committees who receive requests to establish JWG shall reply to such requests in a timely manner.

NOTE For specific rules concerning JWGs between ISO committees and IEC committees, Annex B in addition to the following.

The decision to establish a joint working group shall be accompanied by mutual agreement between the committees on:

— the committee/organization having the administrative responsibility for the project;

— the convenor of the joint working group, who shall be nominated by a P-member from one of the committees, with the option to appoint a co-convenor from the other committee;

— the membership of the joint working group (membership may be open to all P-members and category A- and C-liaisons that wish to participate which may be limited to an equal number of representatives from each committee, if agreed).

The committee/organization with the administrative responsibility for the project shall:

— record the project in their programme of work;

— be responsible for addressing comments (usually referred back to the JWG) and ensure that the comments and votes at all stages of the project are compiled and handled appropriately (see 2.5, 2.6 and 2.7) — all comments are made available to the leadership of the committees;

— prepare drafts for the committee, enquiry and approval stages according to procedures given in 2.5, 2.6 and 2.7;

— be responsible for maintenance of the publication.

Approval criteria are based on the Directives used by the committee with the administrative lead. If the lead committee is a JTC 1 committee, the Consolidated JTC 1 Supplement also applies.

For proposal stage (NP)

— It is possible to establish a JWG at a later stage, in which case its administrative lead will be confirmed by the TCs concerned.

— Once the joint work is agreed, the committee with the administrative lead informs ISO/CS or IEC/CO respectively, of its lead and of the committees participating in the work.

— The other TCs launch a call for experts for participation in the JWG.

For preparatory stage (WD)

— The JWG functions like any other WG: consensus is required to advance to CD.

For committee stage (CD)

— The CD is circulated for review and comment by each committee.

— The final CD requires consensus by all committees, as defined in the ISO/IEC Directives, Part 1.

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For DIS and FDIS ballots

— National Bodies are requested to consult all national mirror committees involved to define one position. A statement is included on the cover page to draw attention of NSBs.

— For an ISO/IEC JWG, two DIS/FDIS votes are launched, i.e. one in each organization.

The Foreword identifies all committees involved in the development of the deliverable.

1.13 Groups having advisory functions within a committee

1.13.1 A group having advisory functions may be established by a technical committee or subcommittee to assist the chair and secretariat in tasks concerning coordination, planning and steering of the committee's work or other specific tasks of an advisory nature.

1.13.2 A proposal to establish such a group shall include recommendations regarding its constitution and terms of reference, including criteria for membership, bearing in mind the requirement for sufficient representation of affected interests while at the same time limiting its size as far as possible in order to ensure its efficient operation. Members of advisory groups shall be committee officers, individuals nominated by National Bodies and/or, as relevant, by A-liaison organizations. The parent committee shall approve the final constitution and the terms of reference prior to the establishment of and nominations to the advisory group.

For chair's advisory groups, consideration shall be given to the provision of equitable participation.

1.13.3 The tasks allocated to such a group may include the making of proposals relating to the drafting or harmonization of publications (in particular International Standards, Technical Specifications, Publicly Available Specifications and Technical Reports), but shall not include the preparation of such documents.

1.13.4 The results of such a group shall be presented in the form of recommendations to the body that established the group. The recommendations may include proposals for the establishment of a working group (see 1.12) or a joint working group (see 1.12.6) for the preparation of publications.

1.13.5 The internal documents of a group having advisory functions shall be distributed to its members only, with a copy to the secretariat of the committee concerned and to the office of the CEO.

1.13.6 Such a group shall be disbanded once its specified tasks have been completed and agreed by the parent committee.

1.14 Ad hoc groups

Technical committees or subcommittees may establish ad hoc groups, the purpose of which is to study a precisely defined problem on which the group reports to its parent committee at the same meeting, or at the latest at the next meeting.

The membership of an ad hoc group shall be chosen from the delegates present at the meeting of the parent committee, supplemented, if necessary, by experts appointed by the committee. The parent committee shall also appoint a convenor.

An ad hoc group shall be automatically disbanded at the meeting to which it has presented its report.

1.15 Liaison between technical committees

1.15.1 Within each organization, technical committees and/or subcommittees working in related fields shall establish and maintain liaison. Liaisons shall also be established, where appropriate, with technical committees responsible for basic aspects of standardization (e.g. terminology, graphical symbols).

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Liaison shall include the exchange of basic documents, including new work item proposals and working drafts.

Committees shall take an official decision on the establishment or removal of an internal liaison. Committees receiving requests for internal liaisons cannot refuse such requests and there is no need for the committee receiving the request to take an official decision confirming its acceptance.

1.15.2 The maintenance of such liaison is the responsibility of the respective technical committee secretariats, which may delegate the task to the secretariats of the subcommittees.

1.15.3 A technical committee or subcommittee may designate a Liaison Representative or Liaison Representatives, to follow the work of another technical committee with which a liaison has been established, or one or several of its subcommittees. The designation of such Liaison Representatives shall be notified to the secretariat of the committee concerned, which shall communicate all relevant documents to the Liaison Representative(s) and to the secretariat of that technical committee or subcommittee. The appointed Liaison Representative shall make progress reports to the secretariat by which s/he has been appointed.

1.15.4 Such Liaison Representatives shall have the right to participate in the meetings of the technical committee or subcommittee whose work they have been designated to follow but shall not have the right to vote. They may contribute to the discussion in meetings, including the submission of written comments, on matters within the competence of their own technical committee and based on feedback that they have collected from their own committee. They may also attend meetings of working groups of the technical committee or subcommittee, but only to contribute the viewpoint of their own technical committee on matters within its competence, and not to otherwise participate in working group activities.

1.16 Liaison between ISO and IEC

1.16.1 Arrangements for adequate liaison between ISO and IEC technical committees and subcommittees are essential. The channel of correspondence for the establishment of liaison between ISO and IEC technical committees and subcommittees is through the offices of the CEOs. As far as the study of new subjects by either organization is concerned, the CEOs seek agreement between the two organizations whenever a new or revised programme of work is contemplated in the one organization which may be of interest to the other, so that the work will go forward without overlap or duplication of effort. (See also Annex B.)

1.16.2 Liaison Representatives designated by ISO or IEC shall have the right to participate in the discussions of the other organization's technical committee or subcommittee whose work they have been designated to follow, and may submit written comments; they shall not have the right to vote.

1.17 Liaison with other organizations

1.17.1 General requirements applicable to all categories of liaisons

In order to be effective, liaison shall operate in both directions, with suitable reciprocal arrangements.

The desirability of liaison shall be taken into account at an early stage of the work.

The liaison organization shall accept the policy based on the ISO/IEC Directives concerning copyright (see 2.13), whether owned by the liaison organization or by other parties. The statement on copyright policy will be provided to the liaison organization with an invitation to make an explicit statement as to its acceptability. The liaison organization is not entitled to charge a fee for documents submitted.

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A liaison organization shall be willing to make a contribution to the technical work of ISO or IEC as appropriate. A liaison organization shall have a sufficient degree of representativity within its defined area of competence within a sector or subsector of the relevant technical or industrial field.

A liaison organization shall agree to ISO/IEC procedures, including IPR (see 2.13).

Liaison organizations shall accept the requirements of 2.14 on patent rights.

Technical committees and subcommittees shall review all their liaison arrangements on a regular basis, at least every 2 years, or at every committee meeting.

1.17.2 Different categories of liaisons (Category A, B and C)

The categories of liaisons are:

— **Category A**: Organizations that make an effective contribution to the work of the technical committee or subcommittee for questions dealt with by this technical committee or subcommittee. Such organizations are given access to all relevant documentation and are invited to meetings. They may nominate experts to participate in a WG (see 1.12.1).

— **Category B**: Organizations that have indicated a wish to be kept informed of the work of the technical committee or subcommittee. Such organizations are given access to reports on the work of a technical committee or subcommittee.

NOTE 1 Category B is reserved for inter-governmental organizations.

— **Category C**: Organizations that make a technical contribution to and participate actively in the work of a working group.

The procedure for the establishment of liaisons is:

— The organization wishing to create a liaison shall send an application liaison form to the office of the CEO with copies to the technical committee or subcommittee officers and IEC CO Technical Officer or ISO CS Technical Programme Manager.

  — ISO application liaison form is available here

  — IEC application liaison form is available here

NOTE 2 Invariably the organization will have been in contact with the technical committee or subcommittee officers prior to submitting its application and in these cases the technical committee or subcommittee officers should ensure that the organization is aware of their obligations as given in clauses 1.17.1 i.e. copyright, agreeing to ISO/IEC procedures including IPR, and patent rights.

— The Office of the CEO will confirm that the eligibility criteria have been fulfilled and then consult with the National Body where the organization making the application has its headquarters;

— In case of objection from the National Body where the organization making the application has its headquarters, the matter will be referred to the technical management board for decision;

— If there is no objection from the National Body where the organization making the application has its headquarters, the application will be sent to the technical committee or subcommittee secretary with a request to circulate it for vote.

1.17.3 Acceptance (Category A, B and C liaisons)

Agreement to establish category A, B and C liaisons requires approval of the application by two-thirds of the P-members voting.

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Committees are urged to seek out the participation of all parties at the beginning of the development of a work item. Where a request for category C liaison is submitted late in the development stage of a particular work item, the P-members will consider the value that can be added by the organization in question despite its late involvement in the working group.

1.17.4 Eligibility

1.17.4.1 At the technical committee/subcommittee level (Category A and B liaisons)

When an organization applies for a liaison with a technical committee/subcommittee, the office of the CEO will check with the member body in the country in which the organization is located. If the member body does not agree that the eligibility criteria have been met, the matter will be referred to the TMB to define the eligibility.

The office of the CEO will also ensure that the organization meets the following eligibility criteria:

— it is not-for-profit;

— is a legal entity — the office of the CEO will request a copy of its statutes;

— it is membership-based and open to members worldwide or over a broad region;

— through its activities and membership demonstrates that it has the competence and expertise to contribute to the development of International Standards or the authority to promote their implementation; and

— has a process for stakeholder engagement and consensus decision-making to develop the input it provides (in ISO, see Guidance for ISO liaison organizations — Engaging stakeholders and building consensus https://www.iso.org/iso/guidance_liaison-organizations.pdf).

1.17.4.2 At the working group level (Category C liaisons)

When an organization applies for a liaison with a working group, the office of the CEO will check with the member body in the country in which the organization is located and will ensure that the organization meets the following eligibility criteria:

— it is not-for-profit;

— through its activities and membership demonstrates that it has the competence and expertise to contribute to the development of International Standards or the authority to promote their implementation; and

— has a process for stakeholder engagement and consensus decision-making to develop the input it provides (in ISO, see Guidance for ISO liaison organizations — Engaging stakeholders and building consensus https://www.iso.org/iso/guidance_liaison-organizations.pdf).

This can include for example manufacturer associations, commercial associations, industrial consortia, user groups and professional and scientific societies. Liaison organizations shall be multinational (in their objectives and standards development activities) with individual, company or country membership and may be permanent or transient in nature.

1.17.5 Rights and obligations

1.17.5.1 At the technical committee/subcommittee level (Category A and B liaisons)

Technical committees and subcommittees shall seek the full and, if possible, formal backing of the organizations having liaison status for each document in which the latter is interested.

Any comments from liaison organizations should be given the same treatment as comments from member bodies. It should not be assumed that refusal by a liaison organization to provide its full backing is

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a sustained opposition. Where such objections are considered sustained oppositions, committees are invited to refer to clause 2.5.6 for further guidance.

1.17.5.2 At the working group level (Category C liaisons)

Category C liaison organizations have the right to participate as full members in a working group, maintenance team or project team (see 1.12.1) but not as project leaders or convenors.

Category C liaison experts act as the official representative of the organization by which they are appointed. They may only attend committee plenary meetings if expressly invited by the committee to attend. If they are invited by the committee to attend, they may only attend as observers.

1.17.6 Carrying over liaisons when a project committee is converted into a technical committee or a subcommittee

When a project committee is converted to a technical committee or a subcommittee, the new technical committee or subcommittee shall pass a resolution confirming which category A and B liaisons are carried over. Approval of the resolution requires a 2/3 majority of P-members voting.

Table 1 — Liaison categories

Category	A	B	C
Purpose	To make an effective contribution to the work of the committee.	To be kept informed of the work of the committee.	To make a technical contribution to drafting standards in a Working Group.
Eligibility	— Not for profit — Legal entity — Membership based (worldwide or over a broad region) — Relevant competence and expertise — Process for stakeholder engagement and consensus decision-making (See clause 1.17.4.1 for full details)	Intergovernmental Organizations only — Not for profit — Legal entity — Membership based (worldwide or over a broad region) — Relevant competence and expertise — Process for stakeholder engagement and consensus decision-making (See clause 1.17.4.1 for full details)	— Not for profit — Relevant competence and expertise — Process for stakeholder engagement and consensus decision-making (See clause 1.17.4.2 for full details)
Level	TC/SC	TC/SC	Working Group
Participation	Participate in TC/SC meetings, access to documents, may appoint experts to WGs and these experts may serve as convenors or Project Leaders.	To be kept informed of the work only (access to documents).	Full participation as a member of the WG (but cannot be convenor or Project Leader).
Rights and obligations	No voting rights, but can comment (comments are given the same treatment as comments from member bodies).Can propose new work items (see clause 2.3.2).	No voting rights, but can comment (comments are given the same treatment as comments from member bodies).Cannot propose new work items.	Experts can attend committee meetings if expressly invited by the committee, but only as observers.Cannot propose new work items.

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2 Development of International Standards

2.1 The project approach

2.1.1 General

The primary duty of a technical committee or subcommittee is the development and maintenance of International Standards. However, committees are also strongly encouraged to consider publication of intermediate deliverables as described in Clause 3.

International Standards shall be developed on the basis of a project approach as described below.

2.1.2 Strategic business plan

Each technical committee shall prepare a strategic business plan for its own specific field of activity,

a) taking into account the business environment in which it is developing its work programme;

b) indicating those areas of the work programme which are expanding, those which have been completed, and those nearing completion or in steady progress, and those which have not progressed and should be cancelled (see also 2.1.9);

c) evaluating revision work needed (see also the respective Supplements to the ISO/IEC Directives);

d) giving a prospective view on emerging needs.

The strategic business plan shall be formally agreed upon by the technical committee and be included in its report for review and approval by the technical management board on a regular basis.

2.1.3 Project stages

2.1.3.1 Table 2 shows the sequence of project stages through which the technical work is developed, and gives the name of the document associated with each project stage. The development of Technical Specifications, Technical Reports and Publicly Available Specifications is described in Clause 3.

Table 2 — Project stages and associated documents

Project stage	Associated document	
	Name	Abbreviation
Preliminary stage	Preliminary work item[a]	PWI
Proposal stage	New work item proposal[a]	NP
Preparatory stage	Working draft(s)[a]	WD
Committee stage	Committee draft(s)[a]	CD
Enquiry stage	Enquiry draft[b]	ISO/DIS IEC/CDV
Approval stage	final draft International Standard[c]	FDIS
Publication stage	International Standard	ISO, IEC or ISO/IEC

[a] These stages may be omitted, as described in Annex F.

[b] Draft International Standard in ISO, committee draft for vote in IEC.

[c] May be omitted (see 2.6.4).

2.1.3.2 Clause F.1 illustrates the steps leading to publication of an International Standard.

2.1.3.3 The ISO and IEC Supplements to the ISO/IEC Directives give a matrix presentation of the project stages, with a numerical designation of associated sub-stages.

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2.1.4 Project description and acceptance

A project is any work intended to lead to the issue of a new, amended or revised International Standard. A project may subsequently be subdivided (see also 2.1.5.4).

A project shall be undertaken only if a proposal has been accepted in accordance with the relevant procedures (see 2.3 for proposals for new work items, and the respective Supplements to the ISO/IEC Directives for review and maintenance of existing International Standards).

2.1.5 Programme of work

2.1.5.1 The programme of work of a technical committee or subcommittee comprises all projects allocated to that technical committee or subcommittee, including maintenance of published standards.

2.1.5.2 In establishing its programme of work, each technical committee or subcommittee shall consider sectoral planning requirements as well as requests for International Standards initiated by sources outside the technical committee, i.e. other technical committees, advisory groups of the technical management board, policy level committees and organizations outside ISO and IEC. (See also 2.1.2.)

2.1.5.3 Projects shall be within the agreed scope of the technical committee. Their selection shall be subject to close scrutiny in accordance with the policy objectives and resources of ISO and IEC. (See also Annex C.)

2.1.5.4 Each project in the programme of work shall be given a number (see IEC Supplements to the ISO/IEC Directives for document numbering at the IEC) and shall be retained in the programme of work under that number until the work on that project is completed or its cancellation has been agreed upon. The technical committee or subcommittee may subdivide a number if it is subsequently found necessary to subdivide the project itself. The subdivisions of the work shall lie fully within the scope of the original project; otherwise, a new work item proposal shall be made.

2.1.5.5 The programme of work shall indicate, if appropriate, the subcommittee and/or working group to which each project is allocated.

2.1.5.6 The agreed programme of work of a new technical committee shall be submitted to the technical management board for approval.

2.1.6 Target dates

The technical committee or subcommittee shall establish, for each project on its programme of work, target dates for the completion of each of the following steps:

— completion of the first working draft (in the event that only an outline of a working document has been provided by the proposer of the new work item proposal — see 2.3);

— circulation of the first committee draft;

— circulation of the enquiry draft;

— circulation of the final draft International Standard (in agreement with the office of the CEO);

— publication of the International Standard (in agreement with the office of the CEO).

These target dates shall correspond to the shortest possible development times to produce International Standards rapidly and shall be reported to the office of the CEO, which distributes the information to

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all National Bodies. For establishment of target dates, see the respective Supplements to the ISO/IEC Directives.

In establishing target dates, the relationships between projects shall be taken into account. Priority shall be given to those projects intended to lead to International Standards upon which other International Standards will depend for their implementation. The highest priority shall be given to those projects having a significant effect on international trade and recognized as such by the technical management board.

The technical management board may also instruct the secretariat of the technical committee or subcommittee concerned to submit the latest available draft to the office of the CEO for publication as a Technical Specification (see 3.1).

All target dates shall be kept under continuous review and amended as necessary, and shall be clearly indicated in the programme of work. Revised target dates shall be notified to the technical management board. The technical management board will cancel all work items which have been on the work programme for more than 5 years and have not reached the approval stage (see 2.7).

2.1.7 Project management

The secretariat of the technical committee or subcommittee is responsible for the management of all projects in the programme of work of that technical committee or subcommittee, including monitoring of their progress against the agreed target dates.

If target dates (see 2.1.6) are not met and there is insufficient support for the work (that is, the acceptance requirements for new work given in 2.3.5 are no longer met), the committee responsible shall cancel the work item.

2.1.8 Project leader

For the development of each project, a project leader (the WG convenor, a designated expert or, if appropriate, the secretary) shall be appointed by the technical committee or subcommittee, taking into account the project leader nomination made by the proposer of the new work item proposal (see 2.3.4). It shall be ascertained that the project leader will have access to appropriate resources for carrying out the development work. The project leader shall act in a purely international capacity, divesting him- or herself of a national point of view. The project leader should be prepared to act as consultant, when required, regarding technical matters arising at the proposal stage through to the publication stage (see 2.5 to 2.8).

The secretariat shall communicate the name and address of the project leader, with identification of the project concerned, to the office of the CEO.

2.1.9 Progress control

Periodical progress reports to the technical committee shall be made by its subcommittees and working groups (see also ISO and IEC Supplements to the ISO/IEC Directives). Meetings between their secretariats will assist in controlling the progress.

The office of the CEO shall monitor the progress of all work and shall report periodically to the technical management board. For this purpose, the office of the CEO shall receive copies of documents as indicated in the ISO and IEC Supplements to the ISO/IEC Directives.

2.2 Preliminary stage

2.2.1 Technical committees or subcommittees may introduce into their work programmes, by a simple majority vote of their P-members, preliminary work items (for example, corresponding to subjects dealing with emerging technologies), which are not yet sufficiently mature for processing to further stages and for which no target dates can be established.

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Such items may include, for example, those listed in the strategic business plan, particularly as given under 2.1.2 d) giving a prospective view on emerging needs.

2.2.2 All preliminary work items shall be registered into the programme of work.

2.2.3 All preliminary work items shall be subject to regular review by the committee. The committee shall evaluate the market relevance and resources required for all such items.

All preliminary work items that have not progressed to the proposal stage in the IEC by the expiration date given by the TC/SC and in ISO within 3 years will be automatically cancelled.

2.2.4 This stage can be used for the elaboration of a new work item proposal (see 2.3) and the development of an initial draft.

2.2.5 Before progressing to the preparatory stage, all such items shall be subject to approval in accordance with the procedures described in 2.3.

2.3 Proposal stage

2.3.1 A new work item proposal (NP) is a proposal for:

— a new standard;

— a new part of an existing standard;

— a Technical Specification (see 3.1) or a Publicly Available Specification (see 3.2).

2.3.2 A new work item proposal within the scope of an existing technical committee or subcommittee may be made in the respective organization by

— a National Body;

— the secretariat of that technical committee or subcommittee;

— another technical committee or subcommittee;

— an organization in category A liaison;

— the technical management board or one of its advisory groups;

— the Chief Executive Officer.

2.3.3 Where both an ISO and an IEC technical committee are concerned, the Chief Executive Officers shall arrange for the necessary coordination. (See also Annex B.)

2.3.4 Each new work item proposal shall be presented using the appropriate form, and shall be fully justified and properly documented (see Annex C).

The proposers of the new work item proposal shall

— make every effort to provide a first working draft for discussion, or shall at least provide an outline of such a working draft;

— nominate a project leader.

The form shall be submitted to the office of the CEO or to the secretariat of the relevant committee for proposals within the scope of an existing committee.

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The office of the CEO or the relevant committee chair and secretariat shall ensure that the proposal is properly developed in accordance with ISO and IEC requirements (see Annex C) and provides sufficient information to support informed decision making by National Bodies.

The office of the CEO or the relevant committee chair and secretariat shall also assess the relationship of the proposal to existing work, and may consult interested parties, including the technical management board or committees conducting related existing work. If necessary, an ad hoc group may be established to examine the proposal. Any review of proposals should not exceed 2 weeks.

In all cases, the office of the CEO or the relevant committee chair and secretariat may also add comments and recommendations to the proposal form.

See Annex K for new work item proposals for project committees.

Copies of the completed form shall be circulated to the members of the technical committee or subcommittee for P-member ballot and to the O-members and liaison members for information.

The proposed date of availability of the publication shall be indicated on the form.

A decision upon a new work item proposal shall be taken by correspondence.

Votes shall be returned within 12 weeks.

The committee may decide on a case-by-case basis by way of a resolution to shorten the voting period for new work item proposals to 8 weeks.

When completing the ballot form, National Bodies shall provide a statement justifying their decision for negative votes ("justification statement"). If no such statement is provided, the negative vote of a National Body will not be registered and considered.

2.3.5 Acceptance requires

a) approval of the work item by a 2/3 majority of the P-members of the technical committees or subcommittees voting — abstentions are excluded when the votes are counted; and

b) a commitment to participate actively in the development of the project, i.e. to make an effective contribution at the preparatory stage, by nominating technical experts and by commenting on working drafts, by at least 4 P-members in committees with 16 or fewer P-members, and at least 5 P-members in committees with 17 or more P-members; only P-members having also approved the inclusion of the work item in the programme of work [see a)] will be taken into account when making this tally. If experts are not nominated on the form accompanying an approval vote, then the National Body's commitment to active participation will not be registered and considered when determining if the approval criteria have been met on this ballot.

Individual committees may increase this minimum requirement of nominated experts.

In cases, where it can be documented that the industry and/or technical knowledge exists only with a very small number of P-members, then the committee may request permission from the technical management board to proceed with fewer than 4 or 5 nominated technical experts.

2.3.6 Once a new work item proposal is accepted, it shall be registered in the programme of work of the relevant technical committee or subcommittee as a new project with the appropriate priority. The agreed target dates (see 2.1.6) shall be indicated on the appropriate form.

The voting results will be reported to the ISO Central Secretariat (using Form 6) or the IEC Central Office (using Form RVN) within 4 weeks after the close of the ballot.

2.3.7 The inclusion of the project in the programme of work concludes the proposal stage.

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2.4 Preparatory stage

2.4.1 The preparatory stage covers the preparation of a working draft (WD) conforming to the ISO/IEC Directives, Part 2.

2.4.2 When a new project is accepted the project leader shall work with the experts nominated by the P-members during the approval [see 2.3.5 a)].

2.4.3 The secretariat may propose to the technical committee or subcommittee, either at a meeting or by correspondence, to create a working group the convenor of which will normally be the project leader.

Such a working group shall be set up by the technical committee or subcommittee, which shall define the task(s) and set the target date(s) for submission of draft(s) to the technical committee or subcommittee (see also 1.12). The working group convenor shall ensure that the work undertaken remains within the scope of the balloted work item.

2.4.4 In responding to the proposal to set up a working group those P-members having agreed to participate actively [see 2.3.5 a)] shall each confirm their technical expert(s). Other P-members or A- or C- liaison organizations may also nominate expert(s).

2.4.5 The project leader is responsible for the development of the project and will normally convene and chair any meetings of the working group. S/he may invite a member of the working group to act as its secretary.

2.4.6 Every possible effort shall be made to prepare both a French and an English version of the text in order to avoid delays in the later stages of the development of the project.

If a trilingual (English — French — Russian) standard is to be prepared, this provision should include the Russian version.

2.4.7 For time limits relating to this stage, see 2.1.6.

2.4.8 The preparatory stage ends when a working draft is available for circulation to the members of the technical committee or subcommittee as a first committee draft (CD) and is registered by the office of the CEO. The committee may also decide to publish the final working draft as a PAS (see 3.2) to respond particular market needs.

2.5 Committee stage

2.5.1 The committee stage is the principal stage at which comments from National Bodies are taken into consideration, with a view to reaching consensus on the technical content. National Bodies shall therefore carefully study the texts of committee drafts and submit all pertinent comments at this stage.

2.5.2 As soon as it is available, a committee draft shall be circulated to all P-members and O-members of the technical committee or subcommittee for consideration, with a clear indication of the latest date for submission of replies.

A period of 8, 12 or 16 weeks as agreed by the technical committee or subcommittee shall be available for National Bodies to comment.

Comments shall be sent for preparation of the compilation of comments, in accordance with the instructions given.

National Bodies shall fully brief their delegates on the national position before meetings.

2.5.3 No more than 4 weeks after the closing date for submission of replies, the secretariat shall prepare the compilation of comments and arrange for its circulation to all P-members and O-members

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of the technical committee or subcommittee. When preparing this compilation, the secretariat shall indicate its proposal, made in consultation with the chair of the technical committee or subcommittee and, if necessary, the project leader, for proceeding with the project, either

a) to discuss the committee draft and comments at the next meeting, or

b) to circulate a revised committee draft for consideration, or

c) to register the committee draft for the enquiry stage (see 2.6).

In the case of b) and c), the secretariat shall indicate in the compilation of comments the action taken on each of the comments received. This shall be made available to all P-members, if necessary by the circulation of a revised compilation of comments, no later than in parallel with the submission of a revised CD for consideration by the committee (case b) or simultaneously with the submission of the finalized version of the draft to the office of the CEO for registration for the enquiry stage (case c).

Committees are required to respond to all comments received.

If, within 8 weeks from the date of dispatch, 2 or more P-members disagree with proposal b) or c) of the secretariat, the committee draft shall be discussed at a meeting (see 4.2.1.3).

2.5.4 If a committee draft is considered at a meeting but agreement on it is not reached on that occasion, a further committee draft incorporating decisions taken at the meeting shall be distributed within 12 weeks for consideration. A period of 8, 12 or 16 weeks as agreed by the technical committee or subcommittee shall be available to National Bodies to comment on the draft and on any subsequent versions.

2.5.5 Consideration of successive drafts shall continue until consensus of the P-members of the technical committee or subcommittee has been obtained or a decision to abandon or defer the project has been made.

2.5.6 The decision to circulate an enquiry draft (see 2.6.1) shall be taken on the basis of the consensus principle.

It is the responsibility of the chair of the technical committee or subcommittee, in consultation with the secretary of his/her committee and, if necessary, the project leader, to judge whether there is sufficient support bearing in mind the definition of consensus given in ISO/IEC Guide 2:2004.

> "**consensus**: General agreement, characterized by the absence of sustained opposition to substantial issues by any important part of the concerned interests and by a process that involves seeking to take into account the views of all parties concerned and to reconcile any conflicting arguments.
>
> NOTE Consensus need not imply unanimity."

The following applies to the definition of consensus:

In the process of reaching consensus, many different points of views will be expressed and addressed as the document evolves. However, "sustained oppositions" are views expressed at minuted meetings of committee, working group (WG) or other groups (e.g. task forces, advisory groups, etc.) and which are maintained by an important part of the concerned interest and which are incompatible with the committee consensus. The notion of "concerned interest(s)" will vary depending on the dynamics of the committee and shall therefore be determined by the committee leadership on a case by case basis. The concept of sustained opposition is not applicable in the context of member body votes on CD, DIS or FDIS since these are subject to the applicable voting rules.

Those expressing sustained oppositions have a right to be heard and the following approach is recommended when a sustained opposition is declared:

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— The leadership shall first assess whether the opposition can be considered a “sustained opposition”, i.e. whether it has been sustained by an important part of the concerned interest. If this is not the case, the leadership will register the opposition (i.e. in the minutes, records, etc.) and continue to lead the work on the document.

— If the leadership determines that there is a sustained opposition, it is required to try and resolve it in good faith. However, a sustained opposition is not akin to a right to veto. The obligation to address the sustained oppositions does not imply an obligation to successfully resolve them.

The responsibility for assessing whether or not consensus has been reached rests entirely with the leadership. This includes assessing whether there is sustained opposition or whether any sustained opposition can be resolved without compromising the existing level of consensus on the rest of the document. In such cases, the leadership will register the opposition and continue the work.

Those parties with sustained oppositions may avail themselves of appeals mechanisms as detailed in Clause 5.

In case of doubt concerning consensus, approval by a two-thirds majority of the P-members of the technical committee or subcommittee voting may be deemed to be sufficient for the committee draft to be accepted for registration as an enquiry draft; however every attempt shall be made to resolve negative votes.

The secretariat of the technical committee or subcommittee responsible for the committee draft shall ensure that the enquiry draft fully embodies decisions taken either at meetings or by correspondence.

2.5.7 When consensus has been reached in a technical committee or subcommittee, its secretariat shall submit the finalized version of the draft in electronic form suitable for distribution to the national members for enquiry (2.6.1), to the office of the CEO (with a copy to the technical committee secretariat in the case of a subcommittee) within a maximum of 16 weeks.

2.5.8 For time limits relating to this stage, see 2.1.6.

2.5.9 The committee stage ends when all technical issues have been resolved and a committee draft is accepted for circulation as an enquiry draft and is registered by the office of the CEO. Texts that do not conform to the ISO/IEC Directives, Part 2 shall be returned to the secretariat with a request for correction before they are registered.

2.5.10 If the technical issues cannot all be resolved within the appropriate time limits, technical committees and subcommittees may wish to consider publishing an intermediate deliverable in the form of a Technical Specification (see 3.1) pending agreement on an International Standard.

2.6 Enquiry stage

2.6.1 At the enquiry stage, the enquiry draft (DIS in ISO, CDV in IEC) shall be circulated by the office of the CEO to all National Bodies for a 12-week vote.

For policy on the use of languages, see Annex E.

National Bodies shall be advised of the date by which completed ballots are to be received by the office of the CEO.

At the end of the voting period, the Chief Executive Officer shall send within 4 weeks to the chair and secretariat of the technical committee or subcommittee the results of the voting together with any comments received, for further speedy action.

2.6.2 Votes submitted by National Bodies shall be explicit: positive, negative, or abstention.

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A positive vote may be accompanied by editorial or technical comments, on the understanding that the secretary, in consultation with the chair of the technical committee or subcommittee and project leader, will decide how to deal with them.

If a National Body finds an enquiry draft unacceptable, it shall vote negatively and state the technical reasons. It may indicate that the acceptance of specified technical modifications will change its negative vote to one of approval, but it shall not cast an affirmative vote which is conditional on the acceptance of modifications.

2.6.3 An enquiry draft is approved if

a) a two-thirds majority of the votes cast by the P-members of the technical committee or subcommittee are in favour, and

b) not more than one-quarter of the total number of votes cast are negative.

Abstentions are excluded when the votes are counted, as well as negative votes not accompanied by technical reasons.

Comments received after the normal voting period are submitted to the technical committee or subcommittee secretariat for consideration at the time of the next review of the International Standard.

2.6.4 On receipt of the results of the voting and any comments, the chair of the technical committee or subcommittee, in cooperation with its secretariat and the project leader, and in consultation with the office of the CEO, shall take one of the following courses of action:

a) when the approval criteria of 2.6.3 are met and no technical changes are to be included, to proceed directly to publication (see 2.8);

b) when the approval criteria of 2.6.3 are met, but technical changes are to be included, to register the enquiry draft, as modified, as a final draft international standard;

c) when the approval criteria of 2.6.3 are not met:

   1) to circulate a revised enquiry draft for voting (see 2.6.1), or
   NOTE: A revised enquiry draft will be circulated for a voting period of 8 weeks, which may be extended up to 12 weeks at the request of one or more P-members of the committee concerned.

   2) to circulate a revised committee draft for comments, or

   3) to discuss the enquiry draft and comments at the next meeting.

2.6.5 Not later than 12 weeks after the end of the voting period, a full report shall be prepared by the secretariat of the technical committee or subcommittee and circulated by the office of the CEO to the National Bodies. The report shall

a) show the result of the voting;

b) state the decision of the chair of the technical committee or subcommittee;

c) reproduce the text of the comments received; and

d) include the observations of the secretariat of the technical committee or subcommittee on each of the comments submitted.

Every attempt shall be made to resolve negative votes.

If, within 8 weeks from the date of dispatch, two or more P-members disagree with decision 2.6.4 c) 1) or 2.6.4 c) 2) of the chair, the draft shall be discussed at a meeting (see 4.2.1.3).

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Committees are required to respond to all comments received.

2.6.6 When the chair has taken the decision to proceed to the approval stage (see 2.7) or publication stage (see 2.8), the secretariat of the technical committee or subcommittee shall prepare, within a maximum of 16 weeks after the end of the voting period and with the assistance of its editing committee, a final text and send it to the office of the CEO for preparation and circulation of the final draft International Standard.

The secretariat shall provide the office of the CEO with the text in a revisable electronic format and also in a format which permits validation of the revisable form.

Texts that do not conform to the ISO/IEC Directives, Part 2 shall be returned to the secretariat with a request for correction before they are registered.

2.6.7 For time limits relating to this stage, see 2.1.6.

2.6.8 The enquiry stage ends with the registration, by the office of the CEO, of the text for circulation as a final draft International Standard or publication as an International Standard, in the case of 2.6.4 a) and 2.6.4 b).

2.7 Approval stage

2.7.1 At the approval stage, the final draft International Standard (FDIS) shall be distributed by the office of the CEO within 12 weeks to all National Bodies for a 8-week vote (6 weeks in IEC).

National Bodies shall be advised of the date by which ballots are to be received by the office of the CEO.

2.7.2 Votes submitted by National Bodies shall be explicit: positive, negative, or abstention.

A National Body may submit comments on any FDIS vote.

If a National Body finds a final draft International Standard unacceptable, it shall vote negatively and state the technical reasons. It shall not cast an affirmative vote that is conditional on the acceptance of modifications.

2.7.3 A final draft International Standard having been circulated for voting is approved if

a) a two-thirds majority of the votes cast by the P-members of the technical committee or subcommittee are in favour, and

b) not more than one-quarter of the total number of votes cast are negative.

Abstentions are excluded when the votes are counted, as well as negative votes not accompanied by technical reasons.

2.7.4 The secretariat of the technical committee or subcommittee has the responsibility of bringing any errors that may have been introduced in the preparation of the draft to the attention of the office of the CEO by the end of the voting period; further editorial or technical amendments are not acceptable at this stage.

2.7.5 All comments received will be retained for the next review and will be recorded on the voting form as “noted for future consideration”. However, the Secretary along with the office of the CEO may seek to resolve obvious editorial errors. Technical changes to an approved FDIS are not allowed.

Within 2 weeks after the end of the voting period, the office of the CEO shall circulate to all National Bodies a report showing the result of voting and indicating either the formal approval by National Bodies to issue the International Standard or formal rejection of the final draft International Standard.

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2.7.6 If the final draft International Standard has been approved in accordance with the conditions of 2.7.3, it shall proceed to the publication stage (see 2.8).

2.7.7 If the final draft International Standard is not approved in accordance with the conditions in 2.7.3, the document shall be referred back to the technical committee or subcommittee concerned for reconsideration in the light of the technical reasons submitted in support of the negative votes.

The committee may decide to:

— resubmit a modified draft as a committee draft, enquiry draft or, in ISO and JTC 1, final draft International Standard;

— publish a Technical Specification (see 3.1);

— cancel the project.

2.7.8 The approval stage ends with the circulation of the voting report (see 2.7.5) stating that the FDIS has been approved for publication as an International Standard, with the publication of a Technical Specification (see 3.1.1.2), or with the document being referred back to the committee.

2.8 Publication stage

2.8.1 Within 6 weeks, the office of the CEO shall correct any errors indicated and validated by the secretariat of the technical committee or subcommittee, and publish and distribute the International Standard.

2.8.2 The publication stage ends with the publication of the International Standard.

2.9 Maintenance of deliverables

The procedures for the maintenance of deliverables are given in the respective Supplements to the ISO/IEC Directives.

2.10 Corrections and amendments

2.10.1 General

A published International Standard may subsequently be modified by the publication of

— a technical corrigendum (in IEC only);

— a corrected version;

— an amendment; or

— a revision (as part of the maintenance procedure in 2.9).

NOTE In case of revision a new edition of the International Standard will be issued.

2.10.2 Corrections

A correction is only issued to correct an error or ambiguity, inadvertently introduced either in drafting or in publishing and which could lead to incorrect or unsafe application of the publication.

Corrections are not issued to update information that has become outdated since publication.

Suspected errors shall be brought to the attention of the secretariat of the technical committee or subcommittee concerned. After confirmation by the secretariat and chair, if necessary in consultation with

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the project leader and P-members of the technical committee or subcommittee, the secretariat shall submit to the office of the CEO a proposal for correction, with an explanation of the need to do so.

The Chief Executive Officer shall decide, in consultation with the secretariat of the technical committee or subcommittee, and bearing in mind both the financial consequences to the organization and the interests of users of the publication, whether to publish a technical corrigendum (in IEC only) and/or a corrected version of the existing edition of the publication (see also 2.10.4). The secretariat of the committee will then inform the members of the committee of the outcome.

The corrections are mentioned in the Foreword of the corrected version.

In general, a correction will not be issued for a publication that is older than 3 years.

2.10.3 Amendments

An amendment alters and/or adds to previously agreed technical provisions in an existing International Standard. An amendment is considered as a partial revision: the rest of the International Standard is not open for comments.

An amendment is normally published as a separate document, the edition of the International Standard affected remaining in use.

The procedure for developing and publishing an amendment shall be as described in 2.3 (ISO and JTC 1), or the review and maintenance procedures (see IEC Supplement) and 2.4, 2.5, 2.6 (draft amendment, DAM), 2.7 (final draft amendment, FDAM), and 2.8.

At the approval stage (2.7), the Chief Executive Officer shall decide, in consultation with the secretariat of the technical committee or subcommittee, and bearing in mind both the financial consequences to the organization and the interests of users of the International Standard, whether to publish an amendment or a new edition of the International Standard, incorporating the amendment. (See also 2.10.4.)

NOTE Where it is foreseen that there will be frequent *additions* to the provisions of an International Standard, the possibility should be borne in mind at the outset of developing these additions as a series of parts (see ISO/IEC Directives, Part 2).

2.10.4 Avoidance of proliferation of modifications

No more than 2 separate documents in the form of technical corrigenda (in IEC only) or amendments shall be published modifying a current International Standard. The development of a third such document shall result in publication of a new edition of the International Standard.

2.11 Maintenance agencies

When a technical committee or subcommittee has developed a standard that will require frequent modification, it may decide that a maintenance agency is required. Rules concerning the designation of maintenance agencies are given in Annex G.

2.12 Registration authorities

When a technical committee or subcommittee has developed a standard that includes registration provisions, a registration authority is required. Rules concerning the designation of registration authorities are given in Annex H.

2.13 Copyright

The copyright for all drafts and International Standards and other publications belongs to ISO, IEC or ISO and IEC, respectively as represented by the office of the CEO.

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The content of, for example, an International Standard may originate from a number of sources, including existing national standards, articles published in scientific or trade journals, original research and development work, descriptions of commercialized products, etc. These sources may be subject to one or more rights.

In ISO and IEC, there is an understanding that original material contributed to become a part of an ISO, IEC or ISO/IEC publication can be copied and distributed within the ISO and/or IEC systems (as relevant) as part of the consensus building process, this being without prejudice to the rights of the original copyright owner to exploit the original text elsewhere. Where material is already subject to copyright, the right should be granted to ISO and/or IEC to reproduce and circulate the material. This is frequently done without recourse to a written agreement, or at most to a simple written statement of acceptance. Where contributors wish a formal signed agreement concerning copyright of any submissions they make to ISO and/or IEC, such requests shall be addressed to ISO Central Secretariat or the IEC Central Office, respectively.

Attention is drawn to the fact that the respective members of ISO and IEC have the right to adopt and re-publish any respective ISO and/or IEC standard as their national standard. Similar forms of endorsement do or may exist (for example, with regional standardization organizations).

2.14 Reference to patented items (see also Annex I)

2.14.1 If, in exceptional situations, technical reasons justify such a step, there is no objection in principle to preparing an International Standard in terms which include the use of items covered by patent rights — defined as patents, utility models and other statutory rights based on inventions, including any published applications for any of the foregoing — even if the terms of the standard are such that there are no alternative means of compliance. The rules given below shall be applied.

2.14.2 If technical reasons justify the preparation of a document in terms which include the use of items covered by patent rights, the following procedures shall be complied with:

a) The proposer of a proposal for a document shall draw the attention of the committee to any patent rights of which the proposer is aware and considers to cover any item of the proposal. Any party involved in the preparation of a document shall draw the attention of the committee to any patent rights of which it becomes aware during any stage in the development of the document.

b) If the proposal is accepted on technical grounds, the proposer shall ask any holder of such identified patent rights for a statement that the holder would be willing to negotiate worldwide licences under his/her rights with applicants throughout the world on reasonable and non-discriminatory terms and conditions. Such negotiations are left to the parties concerned and are performed outside ISO and/or IEC. A record of the right holder's statement shall be placed in the registry of the ISO Central Secretariat or IEC Central Office as appropriate. If the right holder does not provide such a statement, the committee concerned shall not proceed with inclusion of an item covered by a patent right in the document without authorization from ISO Council or IEC Council Board as appropriate.

c) A document shall not be published until the statements of the holders of all identified patent rights have been received, unless the council board concerned gives authorization.

2.14.3 Should it be revealed after publication of a document that licences under patent rights, which appear to cover items included in the document, cannot be obtained under reasonable and non-discriminatory terms and conditions, the document shall be referred back to the relevant committee for further consideration.

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3 Development of other deliverables

3.1 Technical Specifications

Technical Specifications may be prepared and published under the following circumstances and conditions.

3.1.1 When the subject in question is still under development or where for any other reason there is the future but not immediate possibility of an agreement to publish an International Standard, the technical committee or subcommittee may decide, by following the procedure set out in 2.3, that the publication of a Technical Specification would be appropriate. The procedure for preparation of such a Technical Specification shall be as set out in 2.4 and 2.5. The decision to publish the resulting document as a Technical Specification shall require a two-thirds majority vote of the P-members voting of the technical committee or subcommittee. A Technical Specification is a normative document.

In ISO, when the required support cannot be obtained for a final draft International Standard to pass the approval stage (see 2.7), or in case of doubt concerning consensus, the technical committee or subcommittee may decide, by a two-thirds majority vote of P-members voting, that the document should be published in the form of a Technical Specification.

3.1.2 When the P-members of a technical committee or subcommittee have agreed upon the publication of a Technical Specification, the draft specification shall be submitted electronically by the secretariat of the technical committee or subcommittee to the office of the CEO within 16 weeks for publication. Competing technical specifications offering different technical solutions are possible provided that they do not conflict with existing International Standards.

3.1.3 Technical Specifications shall be subject to review by the technical committee or subcommittee not later than 3 years after their publication. The aim of such review shall be to re-examine the situation which resulted in the publication of a Technical Specification and if possible to achieve the agreement necessary for the publication of an International Standard to replace the Technical Specification. In IEC, the date for this review is based on the stability date which shall be agreed in advance of the publication of the Technical Specification (review date).

3.2 Publicly Available Specifications (PAS)

3.2.1 A PAS may be an intermediate specification, published prior to the development of a full International Standard, or, in IEC may be a “dual logo” publication published in collaboration with an external organization. It is a document not fulfilling the requirements for a standard. A PAS is a normative document.

3.2.2 A proposal for submission of a PAS may be made by the Secretariat, an A-liaison or by any P-member of the committee. In IEC, a C-liaison may also submit a PAS (see 1.17).

3.2.3 The PAS is published after verification of the presentation and checking that there is no conflict with existing International Standards by the committee concerned and following simple majority approval of the P-members voting of the committee concerned. Competing PAS offering different technical solutions are possible provided that they do not conflict with existing International Standards.

3.2.4 A PAS shall remain valid for an initial maximum period of 3 years in ISO and 2 years in IEC. The validity may be extended for a single period up to a maximum of 3 years in ISO and 2 years in IEC, at the end of which it shall be transformed with or without change into another type of normative document, or shall be withdrawn.

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3.3 Technical Reports

3.3.1 When a technical committee or subcommittee has collected data of a different kind from that which is normally published as an International Standard (this may include, for example, data obtained from a survey carried out among the National Bodies, data on work in other international organizations or data on the "state of the art" in relation to standards of National Bodies on a particular subject), the technical committee or subcommittee may decide, by a simple majority vote of P-members voting, to request the Chief Executive Officer to publish such data in the form of a Technical Report. The document shall be entirely informative in nature and shall not contain matter implying that it is normative. It shall clearly explain its relationship to normative aspects of the subject which are, or will be, dealt with in International Standards related to the subject. The Chief Executive Officer, if necessary in consultation with the technical management board, shall decide whether to publish the document as a Technical Report.

3.3.2 When the P-members of a technical committee or subcommittee have agreed upon the publication of a Technical Report, the draft report shall be submitted electronically by the secretariat of the technical committee or subcommittee to the Chief Executive Officer within 16 weeks for publication.

3.3.3 It is recommended that Technical Reports are regularly reviewed by the committee responsible, to ensure that they remain valid. Withdrawal of a Technical Report is decided by the technical committee or subcommittee responsible.

Technical Reports are not subject to systematic revision.

4 Meetings

4.1 General

National Bodies are reminded that they are not permitted to charge delegates/experts any sort of participation fee, nor require accommodations at specific hotels or hotel rates for any meetings of technical committees, subcommittees, working groups, maintenance and project teams. The basic meeting facilities shall be funded entirely by resources from a National Body and/or voluntary sponsors. For more information in IEC, see Meeting Guide (https://www.iec.ch/members_experts/refdocs/iec/IEC_Meeting_Guide_2012.pdf) and for ISO, see Annex SF for further details.

4.1.1 Technical committees and subcommittees shall use current electronic means to carry out their work (for example, e-mail, groupware and teleconferencing) wherever possible. A meeting of a technical committee or subcommittee should be convened only when it is necessary to discuss committee drafts (CD) or other matters of substance which cannot be settled by other means.

4.1.2 The technical committee secretariat should look ahead with a view to drawing up, in consultation with the office of the CEO, a planned minimum 2-year programme of meetings of the technical committee and its subcommittees and, if possible, its working groups, taking account of the programme of work.

4.1.3 In planning meetings, account should be taken of the possible advantage of grouping meetings of technical committees and subcommittees dealing with related subjects, in order to improve communication and to limit the burden of attendance at meetings by delegates who participate in several technical committees or subcommittees.

4.1.4 In planning meetings, account should also be taken of the advantages for the speedy preparation of drafts of holding a meeting of the editing committee immediately after the meeting of the technical committee or subcommittee and at the same place.

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4.2 Procedure for calling a meeting

4.2.1 Technical committee and subcommittee meetings

4.2.1.1 The date and place of a meeting shall be subject to an agreement between the chair and the secretariat of the technical committee or subcommittee concerned, the Chief Executive Officer and the National Body acting as host. In the case of a subcommittee meeting, the subcommittee secretariat shall first consult with the secretariat of the parent technical committee in order to ensure coordination of meetings (see also 4.1.3).

4.2.1.2 A National Body wishing to act as host for a particular meeting shall contact the Chief Executive Officer and the technical committee or subcommittee secretariat concerned.

The National Body shall first ascertain that there are no restrictions imposed by its country to the entry of representatives of any P-member of the technical committee or subcommittee for the purpose of attending the meeting.

The hosting organizations are advised to verify and provide information on access means to meeting facilities. As per clause 4.2.1.3, a document describing logistics for the meeting shall be circulated. As well as location and transport information, it should provide details of the accessibility of meeting facilities.

During the planning process, there should be a request for notification of specific accessibility requirements. The hosting body should make its best efforts to satisfy these requirements.

4.2.1.3 The secretariat shall ensure that arrangements are made for the agenda and logistical information to be circulated by the office of the CEO (in the IEC) or by the secretariat with a copy to the office of the CEO (in ISO) at the latest 16 weeks before the date of the meeting.

NOTE All new work item proposals must be approved by correspondence (committee internal ballot – CIB) see 2.3.4.

Only those committee drafts for which the compilation of comments will be available at least 6 weeks before the meeting shall be included on the agenda and be eligible for discussion at the meeting.

Any other working documents, including compilations of comments on drafts to be discussed at the meeting, shall be distributed not less than 6 weeks in advance of the meeting.

The agenda shall clearly state the starting and estimated finishing times.

In the event of meetings over running the estimated finishing time, the Chair shall ensure that the P-members are willing to take voting decisions. However if P-members leave, they may request the Chair not to take any further voting decisions.

4.2.2 Working group meetings

4.2.2.1 Working groups shall use current electronic means to carry out their work (for example, e-mail, groupware and teleconferencing) wherever possible. For a fully remote meeting, the advance notice shall be made available a minimum of 4 weeks in advance of the meeting.

When a physical meeting needs to be held, notification by the convenor of the meetings of a working group shall be sent to its members and to the secretariat of the parent committee, at least 6 weeks in advance of the meeting.

The Working Group leadership should ensure that everything reasonable is done to enable experts to actively participate.

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Arrangements for meetings shall be made between the convenor and the member of the working group in whose country the meeting is to be held. The latter member shall be responsible for all practical working arrangements.

4.2.2.2 If a working group meeting is to be held in conjunction with a meeting of the parent committee, the convenor shall coordinate arrangements with the secretariat of the parent committee. In particular it shall be ensured that the working group members receive all general information for the meeting, which is sent to delegates to the meeting of the parent committee.

4.2.2.3 Either the WG (or PT/MT/AC in IEC) leader or the Secretary of the relevant committee shall notify National Body Secretariats of any WG (or PT/MT/AC in IEC) meeting held in their country.

4.3 Languages at meetings

While the official languages are English, French and Russian, meetings are conducted in English by default.

The National Body for the Russian Federation provides all interpretation and translation into or from the Russian language.

The chair and secretariat are responsible for dealing with the question of language at a meeting in a manner acceptable to the participants following the general rules of ISO or IEC, as appropriate. (See also Annex E.)

4.4 Cancellation of meetings

Every possible effort shall be made to avoid cancellation or postponement of a meeting once it has been convened. Nevertheless, if the agenda and basic documents are not available within the time required by 4.2.1.3, then the Chief Executive Officer has the right to cancel the meeting.

5 Appeals

5.1 General

5.1.1 National Bodies have the right of appeal

a) to the parent technical committee on a decision of a subcommittee;

b) to the technical management board on a decision of a technical committee;

c) to the council board on a decision of the technical management board,

within 12 weeks in ISO and 8 weeks in IEC of the decision in question.

The decision of the council board on any case of appeal is final.

5.1.2 A P-member of a technical committee or subcommittee may appeal against any action, or inaction, on the part of the technical committee or subcommittee, when the P-member considers that such action or inaction is

a) not in accordance with
   - the Statutes and Rules of Procedure;
   - the ISO/IEC Directives; or

b) not in the best interests of international trade and commerce, or such public factors as safety, health or environment.

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5.1.3 Matters under appeal may be either technical or administrative in nature.

Appeals on decisions concerning new work item proposals, committee drafts, enquiry drafts and final draft International Standards are only eligible for consideration if

— questions of principle are involved, or

— the contents of a draft may be detrimental to the reputation of ISO or IEC.

5.1.4 All appeals shall be fully documented to support the P-member's concern.

5.2 Appeal against a subcommittee decision

5.2.1 The documented appeal shall be submitted by the P-member to the secretariat of the parent technical committee, with a copy to the Chief Executive Officer.

5.2.2 Upon receipt, the secretariat of the parent technical committee shall advise all its P-members of the appeal and take immediate action, by correspondence or at a meeting, to consider and decide on the appeal, consulting the Chief Executive Officer in the process.

5.2.3 If the technical committee supports its subcommittee, then the P-member which initiated the appeal may either

— accept the technical committee decision, or

— appeal against it.

5.3 Appeal against a technical committee decision

5.3.1 Appeals against a technical committee decision may be of 2 kinds:

— an appeal arising out of 5.2.3 above, or

— an appeal against an original decision of a technical committee.

5.3.2 The documented appeal shall, in all cases, be submitted to the Chief Executive Officer, with a copy to the chair and secretariat of the technical committee.

5.3.3 The Chief Executive Officer shall, following whatever consultations s/he deems appropriate, refer the appeal together with his/her comments to the technical management board within 4 weeks after receipt of the appeal.

5.3.4 The technical management board shall decide whether an appeal shall be further processed or not. If the decision is in favour of proceeding, the chair of the technical management board shall form a conciliation panel.

The conciliation panel shall hear the appeal within 12 weeks and attempt to resolve the difference of opinion as soon as practicable. The conciliation panel shall give a final report within 12 weeks. If the conciliation panel is unsuccessful in resolving the difference of opinion, this shall be reported to the Chief Executive Officer, together with recommendations on how the matter should be settled.

5.3.5 The Chief Executive Officer, on receipt of the report of the conciliation panel, shall inform the technical management board, which will make its decision.

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5.4 Appeal against a technical management board decision

An appeal against a decision of the technical management board shall be submitted to the Chief Executive Officer with full documentation on all stages of the case.

The Chief Executive Officer shall refer the appeal together with his/her comments to the members of the council board within 4 weeks after receipt of the appeal.

The council board shall make its decision within 12 weeks.

5.5 Progress of work during an appeal process

When an appeal is against a decision respecting work in progress, the work shall be continued, up to and including the approval stage (see 2.7).

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Annex A
(normative)

Guides

A.1 Introduction

In addition to International Standards, Technical Specifications, Publicly Available Specifications and Technical Reports prepared by technical committees, ISO and IEC publish Guides on matters related to international standardization. Guides shall be drafted in accordance with the ISO/IEC Directives, Part 2.

Guides shall not be prepared by technical committees and subcommittees. They may be prepared by an ISO Policy Development Committee, an IEC Advisory Committee or Strategic Group, an ISO group reporting to the ISO technical management board, or an ISO/IEC Joint Coordination Group. These bodies are referred to below as the "Committee or Group responsible for the project".

The procedure for preparation and publication of a Guide is as described below.

A.2 Proposal stage

The ISO and/or IEC technical management board will approve proposals for new Guides or revisions of Guides and decide on the secretariat and composition of the Committee or Group responsible for the project.

Once a project is approved by the ISO and/or IEC technical management board, the secretariat of the Committee or Group responsible for the project shall ensure that the appropriate interests in ISO and IEC are informed.

A.3 Preparatory stage

The Committee or Group responsible for the project shall ensure that the appropriate interests in ISO and IEC have the opportunity to be represented during the preparation of the working draft.

A.4 Committee stage

Once a working draft is available for circulation as a committee draft, the secretariat of the Committee or Group responsible for the project shall send it to the parent committee or ISO and/or IEC technical management board for vote, comments and to approve its advancement to the Enquiry stage.

A.5 Enquiry stage

A.5.1 The office of the CEOs shall circulate both the English and French texts of the revised draft Guide to all National Bodies for an 8-week translation and preparation period prior to 12-week vote.

A.5.2 The draft Guide is approved for publication as a Guide if not more than one-quarter of the votes cast are negative, abstentions being excluded when the votes are counted.

In the case of ISO/IEC Guides, the draft shall be submitted for approval to the National Bodies of both ISO and IEC. The National Bodies of both organizations need to approve the document if it is to be published as an ISO/IEC Guide.

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If this condition is satisfied for only one of the organizations, ISO or IEC, the Guide may be published under the name of the approving organization only, unless the Committee or Group responsible for the project decides to apply the procedure set out in A.5.3.

A.5.3 If a draft Guide is not approved, or if it is approved with comments the acceptance of which would improve consensus, the chair of the Committee or Group responsible for the project may decide to submit an amended draft for a 8-week vote. The conditions for acceptance of the amended draft are the same as in A.5.2.

A.6 Publication stage

The publication stage shall be the responsibility of the office of the CEO of the organization to which the Committee or Group responsible for the project belongs.

In the case of a Joint ISO/IEC Group, the responsibility shall be decided by agreement between the Chief Executive Officers.

A.7 Withdrawal of a Guide

The Committee or Group responsible for the Guide shall be responsible for deciding if the Guide shall be withdrawn. The formal withdrawal shall be ratified by the technical management board (TMB) in accordance with its normal procedures.

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Annex B
(normative)

ISO/IEC procedures for liaison and work allocation

B.1 Introduction

By the ISO/IEC Agreement of 1976[1)], ISO and IEC together form a system for international standardization as a whole. For this system to operate efficiently, the following procedures are agreed for coordination and allocation of work between the technical committees and subcommittees of both organizations.

B.2 General considerations

The allocation of work between ISO and IEC is based on the agreed principle that all questions relating to international standardization in the electrical and electronic engineering fields are reserved to IEC, the other fields being reserved to ISO and that allocation of responsibility for matters of international standardization where the relative contribution of electrical and non-electrical technologies is not immediately evident will be settled by mutual agreement between the organizations.

Questions of coordination and work allocation may arise when establishing a new ISO or IEC technical committee, or as a result of the activities of an existing technical committee.

The following levels of coordination and work allocation agreement are available. Matters should be raised at the next higher level only after all attempts to resolve them at the lower levels have failed.

a) **Formal liaisons** between ISO and IEC committees for normal inter-committee cooperation.

b) **Organizational consultations**, including technical experts and representatives of the Chief Executive Officers, for cases where technical coordination may have an effect on the future activities of the organizations in a larger sense than the point under consideration.

c) Decisions on work allocation

   — by the technical management boards or, if necessary,

   — the ISO/IEC Joint Technical Advisory Board (JTAB).

Questions affecting both ISO and IEC, on which it has not proved possible to obtain a common decision by the ISO Technical Management Board and the IEC Standardization Management Board, are referred to the ISO/IEC Joint Technical Advisory Board (JTAB) for decision (see 1.3.1).

B.3 Establishing new technical committees

Whenever a proposal to establish a new technical committee is made to the National Bodies of ISO or of IEC respectively, the proposal shall also be submitted to the other organization requesting comment and/or agreement. As a result of these consultations, two cases may arise:

a) the opinion is unanimous that the work should be carried out in one of the organizations;

1) ISO Council resolutions 49/1976 and 50/1976 and IEC Administrative Circular No. 13/1977.

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b) opinions are divided.

In case a), formal action may then be taken to establish the new technical committee according to the unanimous opinion.

In case b), a meeting of experts in the field concerned shall be arranged with representatives of the Chief Executive Officers with a view to reaching a satisfactory agreement for allocation of the work (i.e., organizational level). If agreement is reached at this level, formal action may be taken by the appropriate organization to implement the agreement.

In the case of disagreement after these consultations, the matter may be referred by either organization to the ISO/IEC Joint Technical Advisory Board (JTAB).

B.4 Coordinating and allocating work between ISO and IEC technical committees

B.4.1 Formal liaison at TC level

Most coordination needs arising between individual ISO and IEC committees are successfully dealt with through formal technical liaison arrangements. These arrangements, when requested by either organization, shall be honoured by the other organization. Requests for formal liaison arrangements are controlled by the offices of the CEOs. The requesting organization shall specify the type of liaison required, such as:

a) full or selective exchange of committee documents;

b) regular or selective attendance of liaison representatives at meetings;

c) participation in a standing coordination (or steering) committee for selected ISO and IEC technical committees;

d) setting up of a Joint Working Group (JWG).

B.4.2 Details of agreement

B.4.2.1 Continual efforts shall be made to minimize the overlap areas between IEC and ISO by entrusting areas of work to one of the two organizations.

For areas of work so entrusted, IEC and ISO shall agree through the JTAB on how the views and interests of the other organization are to be fully taken into account.

B.4.2.2 Five working modes of cooperation have been established, as follows:

Mode 1 — Informative relation

One organization is fully entrusted with a specific work area and keeps the other fully informed of all progress.

Mode 2 — Contributive relation

One organization should take the lead of the work and the other should make written contributions where considered appropriate during the progress of this work. This relation also includes the exchange of full information.

Mode 3 — Subcontracting relation

One organization is fully entrusted with the realization of the work on an identified item, but due to specialization of the other, a part of the work is subcontracted and that part is prepared under the responsibility of the second organization. Necessary arrangements shall be made to guarantee the correct

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integration of the resulting subcontracted work into the main part of the programme. The enquiry and approval stages are handled by the organization being the main contractor for the standardization task.

Mode 4 — Collaborative relation

One organization takes the lead in the activities, but the work sessions and meetings receive liaison representatives from the other. Such liaison representatives should have the right to intervene in the debate but have no right to vote. The full flow of information is oriented through this liaison.

Mode 5 — Integrated liaison

Joint Working Groups and Joint Technical Committees ensure integrated meetings for handling together the realization of standards under a principle of total equality of participation.

Joint Working Groups between technical committees of the two organizations shall operate in accordance with 1.12.6.

B.4.2.3 The allocation of work between IEC and ISO for potentially overlapping areas will be set out as required in schedules or programmes which, when agreed by the relevant parties, will form addenda to this agreement.

A consequence of this agreement is that the parties agree to cross-refer to the relevant standards of the other in the respective competent fields of interest.

When the standard being referred to is updated, it is the responsibility of the body making the reference to take care of the updating of the reference where appropriate.

B.4.2.4 For work for which one organization has assumed responsibility and for which there will be subcontracting of work to the other, the fullest account shall be taken of the interests participating in the subcontracted work in defining the objectives of that work.

B.4.2.5 The necessary procedures for enquiry and approval shall be realized by the organization entrusted with a particular standardization task, except as otherwise agreed by the two technical management boards.

B.4.2.6 For standards developed under the Mode 5 — Integrated liaison, the committee, enquiry and approval stages shall be carried out in parallel in both ISO and IEC in accordance with the rules of the organization with the administrative lead. The committee/organization with the administrative responsibility for the project shall submit drafts for the committee, enquiry and approval stages to the other organization two weeks prior to the circulation date.

B.4.2.7 When the enquiry draft has not fulfilled the approval criteria (see 2.6.3) in one of the organizations, then:

— the officers of the committees involved in the joint working group may select one of options given in 2.6.4 c) or

— in exceptional circumstances, if agreed between the officers of the ISO and IEC committees involved in the joint working group and the offices of the CEO, the project may proceed as a single logo standard of the organization in which the enquiry draft was approved. The joint working group is automatically disbanded.

B.4.2.8 If the final draft International Standard is not approved in accordance of the conditions in 2.7.3 then:

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— the committees involved in the joint working group may select one of the options given in 2.7.7, noting that in IEC the circulation of a second final draft International Standard is not allowed and will require a derogation of the TMB or

— in exceptional circumstances, if agreed between the officers of the ISO and IEC committees involved in the joint working group and the offices of the CEO, the standard may be published as a single logo standard of the organization in which the final draft International Standard was approved. The joint working group is automatically disbanded.

B.4.2.9 Standards developed under the Mode 5 — Integrated liaison via a joint working group between ISO and IEC are published by the organization of the committee having administrative responsibility. That organization assigns the reference number of the standard and owns the copyright of the standard. The standard carries the logo of both organizations and may be sold by both organizations. The foreword of the International Standard will identify all the committees responsible for the development. For those standards where the committee with the administrative responsibility is in the IEC, then the foreword will also give the ISO voting results. ISO-lead documents are assigned numbers from 1 to 59999. IEC-lead documents are assigned numbers from 60000 to 79999. In the case of multi-part standards, some parts being under ISO responsibility and some being under IEC responsibility, a number in the 80000 series is assigned (e.g. ISO 80000-1, IEC 80000-6).

B.4.2.10 The maintenance procedures to be used for standards developed under the Mode 5 — Integrated liaison will be those currently applied in the organization which has the committee with the administrative responsibility.

B.4.2.11 If there is a reason, during the development of the project, to change from one mode of operation to another, a recommendation shall be made by both technical committees concerned and submitted to the two technical management boards for information.

B.4.3 Cooperation of secretariats

The secretariats of the technical committees/subcommittees from the two organizations concerned shall cooperate on the implementation of this agreement. There shall be a complete information flow on on-going work and availability on demand to each other of working documents, in accordance with normal procedures.

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Annex C
(normative)

Justification of proposals for the establishment of standards

C.1 General

C.1.1 Because of the large financial resources and manpower involved and the necessity to allocate these according to the needs, it is important that any standardization activity begin by identifying the needs, determining the aims of the standard(s) to be prepared and the interests that may be affected. This will, moreover, help to ensure that the standards produced will cover appropriately the aspects required and be market relevant for the affected sectors. Any new activity shall therefore be reasonably justified before it is begun.

C.1.2 It is understood that, whatever conclusions may be drawn on the basis of the annex, a prerequisite of any new work to be commenced would be a clear indication of the readiness of a sufficient number of relevant interested parties to allocate necessary manpower, funds and to take an active part in the work.

C.1.3 This annex sets out rules for proposing and justifying new work, so that proposals will offer to others the clearest possible idea of the purposes and extent of the work, in order to ensure that standardization resources are really allocated by the parties concerned and are used to the best effect.

C.1.4 This annex does not contain rules of procedure for implementing and monitoring the guidelines contained in it, nor does it deal with the administrative mechanism which should be established to this effect.

C.1.5 This annex is addressed primarily to the proposer of any kind of new work to be started but may serve as a tool for those who will analyse such a proposal or comment on it, as well as for the body responsible for taking a decision on the proposal.

C.2 Terms and definitions

C.2.1 proposal for new work

proposal for a new field of technical activity or for a new work item

C.2.2 proposal for a new field of technical activity

proposal for the preparation of (a) standard(s) in a field that is not covered by an existing committee (such as a technical committee, subcommittee or project committee) of the organization to which the proposal is made

C.2.3 proposal for a new work item

proposal for the preparation of a standard or a series of related standards in the field covered by an existing committee (such as a technical committee) of the organization to which the proposal is made

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C.3 General principles

C.3.1 Any proposal for new work shall lie within the scope of the organization to which it is submitted.

NOTE For example, the objects of ISO are laid down in its Statutes and of IEC in Article 2 of its Statutes.

C.3.2 The documentation justifying new work in ISO and IEC shall make a substantial case for the market relevance of the proposal.

C.3.3 The documentation justifying new work in ISO and IEC shall provide solid information as a foundation for informed ISO or IEC National Body voting.

C.3.4 Within the ISO and IEC systems, the onus is considered to be placed on the proposer to provide the proper documentation to support principles C.3.2 and C.3.3 stated above.

C.4 Elements to be clarified when proposing a new field of technical activity or a new work item

C.4.1 Proposals for new fields of technical activity and new work items shall include the following fields of information (C.4.2 to C.4.13).

C.4.2 Title

The title shall indicate clearly yet concisely the new field of technical activity or the new work item which the proposal is intended to cover.

EXAMPLE 1 (proposal for a new technical activity) “Machine tools”.

EXAMPLE 2 (proposal for a new work item) “Electrotechnical products — Basic environmental testing procedures”.

C.4.3 Scope

C.4.3.1 For new fields of technical activity

The scope shall precisely define the limits of the field of activity. Scopes shall not repeat general aims and principles governing the work of the organization but shall indicate the specific area concerned.

EXAMPLE “Standardization of all machine tools for the working of metal, wood and plastics, operating by removal of material or by pressure”.

C.4.3.2 For new work items

The scope shall give a clear indication of the coverage of the proposed new work item and, if necessary for clarity, exclusions shall be stated.

EXAMPLE 1 This standard lists a series of environmental test procedures, and their severities, designed to assess the ability of electrotechnical products to perform under expected conditions of service.

Although primarily intended for such applications, this standard may be used in other fields where desired.

Other environmental tests, specific to the individual types of specimen, may be included in the relevant specifications.

EXAMPLE 2 Standardization in the field of fisheries and aquaculture, including, but not limited to, terminology, technical specifications for equipment and for their operation, characterization of aquaculture sites and

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maintenance of appropriate physical, chemical and biological conditions, environmental monitoring, data reporting, traceability and waste disposal.

Excluded:

— methods of analysis of food products (covered by ISO/TC 34);

— personal protective clothing (covered by ISO/TC 94);

— environmental monitoring (covered by ISO/TC 207).

C.4.4 Proposed initial programme of work (for proposals for new fields of technical activity only)

C.4.4.1 The proposed programme of work shall correspond to and clearly reflect the aims of the standardization activities and shall, therefore, show the relationship between the subjects proposed.

C.4.4.2 Each item on the programme of work shall be defined by both the subject and aspect(s) to be standardized (for products, for example, the items would be the types of products, characteristics, other requirements, data to be supplied, test methods, etc.).

C.4.4.3 Supplementary justification may be combined with particular items in the programme of work.

C.4.4.4 The proposed programme of work shall also suggest priorities and target dates for new work items (when a series of standards is proposed, priorities shall be suggested).

C.4.5 Indication(s) of the preferred type or types of deliverable(s) to be produced

In the case of proposals for new fields of technical activity, this may be provided under C.4.4.

C.4.6 A listing of relevant existing documents at the international, regional and national levels

Any known relevant documents (such as standards and regulations) shall be listed, regardless of their source and should be accompanied by an indication of their significance.

C.4.7 Relation to and impact on existing work

C.4.7.1 A statement shall be provided regarding any relation or impact the proposed work may have on existing work, especially existing ISO and IEC deliverables. The proposer should explain how the work differs from apparently similar work, or explain how duplication and conflict will be minimized.

C.4.7.2 If seemingly similar or related work is already in the scope of other committees of the organization or in other organizations, the proposed scope shall distinguish between the proposed work and the other work.

C.4.7.3 The proposer shall indicate whether his or her proposal could be dealt with by widening the scope of an existing committee or by establishing a new committee.

C.4.8 Relevant country participation

C.4.8.1 For proposals for new fields of technical activity, a listing of relevant countries should be provided where the subject of the proposal is important to their national commercial interests.

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C.4.8.2 For proposals for new work item within existing committees, a listing of relevant countries should be provided which are not already P-members of the committee, but for whom the subject of the proposal is important to their national commercial interests.

C.4.9 Cooperation and liaison

C.4.9.1 A list of relevant external international organizations or internal parties (other than ISO and/or IEC committees) to be engaged as liaisons in the development of the deliverable(s) shall be provided.

C.4.9.2 In order to avoid conflict with, or duplication of efforts of, other bodies, it is important to indicate all points of possible conflict or overlap.

C.4.9.3 The result of any communication with other interested bodies shall also be included.

C.4.10 Affected stakeholders

A simple and concise statement shall be provided identifying and describing relevant affected stakeholder categories (including small and medium sized enterprises) and how they will each benefit from or be impacted by the proposed deliverable(s).

C.4.11 Base document (for proposals for new work items only)

C.4.11.1 When the proposer considers that an existing well-established document may be acceptable as a standard (with or without amendments) this shall be indicated with appropriate justification and a copy attached to the proposal.

C.4.11.2 All proposals for new work items shall include an attached existing document to serve as an initial basis for the ISO or IEC deliverable or a proposed outline or table of contents.

C.4.11.3 If an existing document is attached that is copyrighted or includes copyrighted content, the proposer shall ensure that appropriate permissions have been granted in writing for ISO or IEC to use that copyrighted content.

C.4.12 Leadership commitment

C.4.12.1 In the case of a proposal for a new field of technical activity, the proposer shall indicate whether his/her organization is prepared to undertake the secretariat work required.

C.4.12.2 In the case of a proposal for new work item, the proposer shall also nominate a project leader.

C.4.13 Purpose and justification

C.4.13.1 The purpose and justification of the standard to be prepared shall be made clear and the need for standardization of each aspect (such as characteristics) to be included in the standard shall be justified.

C.4.13.2 If a series of new work items is proposed the purpose and the justification of which is common, a common proposal may be drafted including all elements to be clarified and enumerating the titles and scopes of each individual item.

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C.4.13.3 Please note that the items listed in the bullet points below represent a menu of suggestions or ideas for possible documentation to support the purpose and justification of proposals. Proposers should consider these suggestions, but they are not limited to them, nor are they required to comply strictly with them. What is most important is that proposers develop and provide purpose and justification information that is most relevant to their proposals and that makes a substantial business case for the market relevance and need of their proposals. Thorough, well-developed and robust purpose and justification documentation will lead to more informed consideration of proposals and ultimately their possible success in the ISO and IEC systems.

— A simple and concise statement describing the business, technological, societal or environmental issue that the proposal seeks to address, preferably linked to the Strategic Business Plan of the concerned ISO or IEC committee.

— Documentation on relevant global metrics that demonstrate the extent or magnitude of the economic, technological, societal or environmental issue, or the new market. This may include an estimate of the potential sales of the resulting standard(s) as an indicator of potential usage and global relevance.

— Technological benefit — a simple and concise statement describing the technological impact of the proposal to support coherence in systems and emerging technologies, convergence of merging technologies, interoperability, resolution of competing technologies, future innovation, etc.

— Economic benefit — a simple and concise statement describing the potential of the proposal to remove barriers to trade, improve international market access, support public procurement, improve business efficiency for a broad range of enterprises including small and medium sized ones, and/or result in a flexible, cost-effective means of complying with international and regional rules/conventions, etc. A simple cost/benefit analysis relating the cost of producing the deliverable(s) to the expected economic benefit to businesses worldwide may also be helpful.

— Societal benefit(s) — a simple and concise statement describing any societal benefits expected from the proposed deliverable(s).

— Environmental benefit(s) — a simple and concise statement describing any environmental or wider sustainability benefits expected from the proposed deliverable(s).

— A simple and concise statement clearly describing the intended use(s) of the proposed deliverable(s), for example, whether the deliverable is intended as requirements to support conformity assessment or only as guidance or recommended best practices; whether the deliverable is a management system standard; whether the deliverable is intended for use or reference in technical regulation; whether the deliverable is intended to be used to support legal cases in relation to international treaties and agreements.

— A simple and concise statement of metrics for the committee to track in order to assess the impact of the published standard over time to achieve the benefits to stakeholders documented under C.4.10 above.

— A statement assessing the prospect of the resulting deliverable(s) being compliant with, for the IEC, the IEC Global Relevance Policy: https://www.iec.ch/members_experts/refdocs/ac_cl/AC_200817e_AC.pdf and for ISO, with ISO's Global Relevance Policy https://www.iso.org/iso/home/standards_development/governance_of_technical_work.htm and the ISO/TMB recommendations (see NOTE below) regarding sustainable development and sustainability, where relevant.

NOTE For ISO, the ISO/TMB confirmed the following recommendations: 1) When a committee (in any sector) develops a standard dealing with sustainability/sustainable development the standard must remain within the context of the committee's scope of work; 2) The committee should also notify the TMB with the title and scope as early as possible; 3) The committee undertaking such work should clarify its intentions in the Introduction of the specific standard(s); 4) The most widely used definition of sustainable development is the one from the UN

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Brundtland committee on sustainable development: development that meets the needs of the present without compromising the ability of future generations to meet their own needs.

— A statement assessing the proposal's compliance with the Principles for developing ISO and IEC Standards related to or supporting public policy initiatives (for ISO see Annex SO in the Consolidated ISO Supplement and for IEC and ISO see Using and referencing ISO and IEC standards to support public policy: http://www.iso.org/sites/policy/) and the possible relation of the resulting deliverable(s) to public policy, including a statement regarding the potential for easier market access due to conformity with appropriate legislation.

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Annex D
(normative)

Resources of secretariats and qualifications of secretaries

D.1 Terms and definitions

D.1.1 secretariat

National Body to which has been assigned, by mutual agreement, the responsibility for providing technical and administrative services to a technical committee or subcommittee

D.1.2 secretary

individual appointed by the secretariat to manage the technical and administrative services provided

D.2 Resources of a secretariat

A National Body to which a secretariat has been assigned shall recognize that, no matter what arrangements it makes in its country to provide the required services, it is the National Body itself that is ultimately responsible for the proper functioning of the secretariat. National Bodies undertaking secretariat functions shall become party to the ISO Service Agreement or IEC Basic Agreement, as appropriate.

The secretariat shall therefore have adequate administrative and financial means or backing to ensure:

a) facilities for word-processing in English and/or French, for providing texts electronically, and for any necessary reproduction of documents;

b) preparation of adequate technical illustrations;

c) identification and use, with translation where necessary, of documents received in the official languages;

d) updating and continuous supervision of the structure of the committee and its subsidiary bodies, if any;

e) reception and prompt dispatch of correspondence and documents;

f) adequate communication facilities by telephone, telefax and electronic mail;

g) access to the Internet;

h) arrangements and facilities for translation, interpretation and services during meetings, in collaboration with the host National Body, as required;

i) attendance of the secretary at any meetings requiring his/her presence, including technical committee and/or subcommittee meetings, editing committee meetings, working group meetings, and consultations with the chair when necessary;

j) access by the secretary to basic International Standards (see the ISO/IEC Directives, Part 2 on "Referencing Documents and sources for drafting") and to International Standards, national standards and/or related documents in the field under consideration;

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k) access by the secretary, when necessary, to experts capable of advising on technical issues in the field of the committee.

Whilst the Chief Executive Officer endeavours to send his/her representative to the first meeting of a technical committee, to meetings of technical committees with new secretariats, and to any technical committee or subcommittee meeting where such presence is desirable for solving problems, the office of the CEO cannot undertake to carry out the work for a secretariat, on a permanent or temporary basis.

D.3 Requirements of a secretary

The individual appointed as secretary shall

a) have sufficient knowledge of English and/or French;

b) be familiar with the *Statutes and rules of procedure*, as appropriate, and with the ISO/IEC Directives (see the respective Supplements to the ISO/IEC Directives);

c) be in a position to advise the committee and any subsidiary bodies on any point of procedure or drafting, after consultation with the office of the CEO if necessary;

d) be aware of any council board or technical management board decision regarding the activities of the technical committees in general and of the committee for which s/he is responsible in particular;

e) be a good organizer and have training in and ability for technical and administrative work, in order to organize and conduct the work of the committee and to promote active participation on the part of committee members and subsidiary bodies, if any;

f) be familiar with the documentation supplied by the offices of CEO, in particular the use of electronic tools and services.

It is recommended that newly appointed secretaries of technical committees should make an early visit to the office of the CEO in Geneva in order to discuss procedures and working methods with the staff concerned.

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Annex E
(normative)

General policy on the use of languages

E.1 Expressing and communicating ideas in an international environment

At the international level, it is common practice to publish deliverables in at least two languages. There are a number of reasons why it is advantageous to use two languages, for example:

— greater clarity and accuracy of meaning can be achieved by expressing a given concept in two languages which have different grammar and syntax;

— if consensus is reached on the basis of a text drafted in only one language, difficulties may arise when it comes to putting that text into another language. Some questions may have to be rediscussed, and this can cause delay if the text originally agreed upon has to be altered. Subsequent drafting into a second language of a text already approved in the first language often brings to light difficulties of expression that could have been avoided if both versions had been prepared at the same time and then amended together;

— to ensure that international meetings will be as productive as possible, it is important for the agreements reached to be utterly devoid of ambiguity, and there has to be no risk that these agreements can be called back into question because of misunderstandings of a linguistic nature;

— the use of two languages chosen from two linguistic groups widens the number of prospective delegates who might be appointed to attend the meetings;

— it becomes easier to express a concept properly in other languages if there are already two perfectly harmonized versions.

E.2 The use of languages in the technical work

The official languages are English, French and Russian.

The work of the technical committees and the correspondence are in English by default.

For the purposes of the above, the National Body for the Russian Federation provides all interpretation and translation into and from the Russian language.

In IEC, a definitive language of development for each deliverable shall be designated in the Foreword. Specific exceptions apply to the IEV and/or database standards.

E.3 International Standards

International Standards are published by the ISO and IEC in English and in French (and sometimes in multilingual editions also including Russian and other languages, especially in cases of terminology). These versions of a given International Standard are equivalent, and each is regarded as being an original-language version.

It is advantageous for the technical content of a standard to be expressed in both English and French from the outset of the drafting procedure, so that these two versions will be studied, amended and adopted at the same time and their linguistic equivalence will be ensured at all times. (See also the ISO/IEC Directives, Part 2, clause on “Language versions”).

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This may be done

— by the secretariat or, under the latter's responsibility, with outside assistance, or

— by the editing committee of the responsible technical committee or subcommittee, or

— by National Bodies whose national language is English or French and under an agreement concluded between those National Bodies and the secretariat concerned.

When it is decided to publish a multilingual International Standard (a vocabulary, for example), the National Body for the Russian Federation takes charge of the Russian portion of the text; similarly, when it is decided to publish an International Standard containing terms or material in languages other than the official languages, the National Bodies whose national languages are involved are responsible for selecting the terms or for drafting the portions of text which are to be in those languages.

E.4 Other publications developed by technical committees

Other publications may be issued in one official language only.

E.5 Documents for technical committee and subcommittee meetings

E.5.1 Drafts and documents referred to the agenda

The documents prepared and circulated prior to a meeting are the following.

a) **Draft agendas**

Draft agendas are prepared and distributed in the language(s) of the meeting (English by default) by the responsible secretariats.

b) **Committee drafts referred to in the agenda**

It is desirable that versions of the committee drafts referred to in the agenda will be available for the meeting in the language(s) of the meeting (English by default).

Enquiry drafts shall be available in English and French. The ISO Council or IEC Standardization Management Board guidelines shall be applied where one of the language versions is not available in due time.

Other documents (sundry proposals, comments, etc.) relating to agenda items may be prepared in only one language (English or French).

E.5.2 Documents prepared and circulated during a meeting

The documents prepared and circulated during a meeting are the following.

a) **Resolutions adopted during the meeting**

An ad hoc drafting committee, formed at the beginning of each meeting and comprising the secretary and, whenever possible, one or more delegates of English and/or French mother tongue, edits each of the proposed resolutions.

b) **Brief minutes, if any, prepared after each session**

If such minutes are prepared, they shall be drafted in English or French and preferably in both with, if necessary, the assistance of the ad hoc drafting committee.

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E.5.3 Documents prepared and circulated after a meeting

After each technical committee or subcommittee meeting, the secretariat concerned shall draft a report of the meeting, which may be in only one language (English or French) and which includes, as annex, the full text of the resolutions adopted, preferably in both English and French.

E.6 Documents prepared in languages other than English or French

National Bodies whose national language is neither English nor French may translate any documents circulated by secretariats into their own national language in order to facilitate the study of those documents by the experts of their country or to assist the delegates they have appointed to attend the meetings of the technical committees and subcommittees.

If one language is common to two or more National Bodies, one of them may at any time take the initiative of translating technical documents into that language and of providing copies to other National Bodies in the same linguistic group.

The terms of the above two paragraphs may be applied by the secretariats for their own needs.

E.7 Technical meetings

E.7.1 Purpose

The purpose of technical meetings is to achieve as full agreement as possible on the various agenda items and every effort shall be made to ensure that all delegates understand one another.

E.7.2 Interpretation of debates into English and French

Although the basic documents may be available in both English and French, it has to be determined according to the case whether interpretation of statements expressed in one language should be given in the other language

— by a volunteer delegate,

— by a staff member from the secretariat or host National Body, or

— by an adequately qualified interpreter.

Care should also be taken that delegates who have neither English nor French as mother tongue can follow the meeting to a sufficient extent.

It is impractical to specify rules concerning the necessity of interpreting the debates at technical meetings. It is essential, of course that all delegates should be able to follow the discussions, but it may not be altogether essential to have a word-for-word interpretation of each statement made.

In view of the foregoing, and except in special cases where interpretation may not be necessary, the following practice is considered appropriate:

a) for meetings where procedural decisions are expected to be taken, brief interpretation may be provided by a member of the secretariat or a volunteer delegate;

b) at working group meetings, the members should, whenever possible, arrange between themselves for any necessary interpretation on the initiative and under the authority of the convenor of the working group.

To enable the secretariat responsible for a meeting to make any necessary arrangements for interpretation, the secretariat should be informed, at the same time as it is notified of attendance at the meeting, of the

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languages in which the delegates are able to express themselves and of any aid which delegates might be able to provide in the matter of interpretation.

In those cases where a meeting is conducted mainly in one language, the following practice should be adopted as far as is practicable in order to assist delegates having the other language:

a) the decision taken on one subject should be announced in both languages before passing to the next subject;

b) whenever a change to an existing text is approved in one language, time should be allowed for delegates to consider the effect of this change on the other language version;

c) a summary of what has been said should be provided in the other language if a delegate so requests.

E.7.3 Interpretation into English and French of statements made in other languages

When at a meeting of a technical committee or a subcommittee a participant wishes, in view of exceptional circumstances, to speak in any language other than English or French, the chair of the session shall be entitled to authorize this, for the session in question, provided that a means of interpretation has been secured.

In order to give all experts an equal opportunity to express their views at meetings of technical committees and subcommittees, a very flexible application of this provision is recommended.

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Annex F
(normative)

Options for development of a project

F.1 Simplified diagram of options

Project stage	Normal procedure	Draft submitted with proposal	"Fast-track procedure" [a]	Technical Specification [b]	Technical Report [c]	Publicly Available Specification [d]
Proposal stage (see 2.3)	Acceptance of proposal	Acceptance of proposal	Acceptance of proposal [a]	Acceptance of proposal		Acceptance of proposal [g]
Preparatory stage (see 2.4)	Preparation of working draft	*Study by working group* [e]		Preparation of draft		Preparation of draft
Committee stage (see 2.5)	Development and acceptance of committee draft	*Development and acceptance of committee draft* [e]		Acceptance of draft	Acceptance of draft	Acceptance of draft
Enquiry stage (see 2.6 and in IEC, see IEC Supplement E.3.1)	Development and acceptance of enquiry draft	Development and acceptance of enquiry draft	Acceptance of enquiry draft			
Approval stage (see 2.7)	*Approval of FDIS* [f]	*Approval of FDIS* [f]	*Approval of FDIS* [f]			
Publication stage (see 2.8)	Publication of International Standard	Publication of International Standard	Publication of International Standard	Publication of Technical Specification	Publication of Technical Report	Publication of PAS

Stages in *italics*, enclosed by dotted circles may be omitted.

[a] See F.2.

[b] See 3.1.

[c] See 3.3.

[d] See 3.2.

[e] According to the result of the vote on the new work item proposal, both the preparatory stage and the committee stage may be omitted.

[f] May be omitted if the approval criteria of 2.6.3 are met and no technical changes are to be included.

[g] See ISO and IEC Supplements for details on proposals for PAS.

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F.2 "Fast-track procedure"

F.2.1 Proposals to apply the fast-track procedure may be made as follows.

F.2.1.1 The Committee Secretariat, any P-member or category A liaison organization of a concerned technical committee or subcommittee may propose that an **existing standard from any source** be submitted for vote as an enquiry draft. The proposer shall obtain the agreement of the originating organization before making a proposal. The criteria for proposing an existing standard for the fast-track procedure are a matter for each proposer to decide.

F.2.1.2 An international standardizing body recognized by the ISO or IEC council board may propose that a **standard developed by that body** be submitted for vote as a final draft International Standard.

F.2.1.3 An organization having entered into a formal technical agreement with ISO or IEC may propose, in agreement with the appropriate technical committee or subcommittee, that a **draft standard developed by that organization** be submitted for vote as an enquiry draft within that technical committee or subcommittee.

F.2.2 The proposal shall be received by the Chief Executive Officer, who shall take the following actions:

a) settle the copyright and/or trademark situation with the organization having originated the proposed document, so that it can be freely copied and distributed to National Bodies without restriction, and advise the organization that the ISO/IEC intellectual property policies shall apply to the proposed document, see in particular 2.13 and 2.14;

b) for cases F.2.1.1 and F.2.1.3, assess in consultation with the relevant secretariats which technical committee/subcommittee is competent for the subject covered by the proposed document; where no technical committee exists competent to deal with the subject of the document in question, the Chief Executive Officer shall refer the proposal to the technical management board, which may request the Chief Executive Officer to submit the document to the enquiry stage and to establish an ad hoc group to deal with matters subsequently arising;

c) ascertain that there is no evident contradiction with other International Standards;

d) distribute the proposed document as an enquiry draft (F.2.1.1 and F.2.1.3) in accordance with 2.6.1, or as a final draft International Standard (case F.2.1.2) in accordance with 2.7.1, indicating (in cases F.2.1.1 and F.2.1.3) the technical committee/subcommittee to the domain of which the proposed document belongs.

F.2.3 The period for voting and the conditions for approval shall be as specified in 2.6 for an enquiry draft and 2.7 for a final draft International Standard. In the case where no technical committee is involved, the condition for approval of a final draft International Standard is that not more than one-quarter of the total number of votes cast are negative.

F.2.4 If, for an enquiry draft, the conditions of approval are met, the draft standard shall progress to the approval stage (2.7). If not, the proposal has failed and any further action shall be decided upon by the technical committee/subcommittee to which the document was attributed in accordance with F.2.2 b).

If, for a final draft International Standard, the conditions of approval are met, the document shall progress to the publication stage (2.8). If not, the proposal has failed and any further action shall be decided upon by the technical committee/subcommittee to which the FDIS was attributed in accordance with F.2.2 b), or by discussion between the originating organization and the office of the CEO if no technical committee was involved.

If the standard is published, its maintenance shall be handled by the technical committee/subcommittee to which the document was attributed in accordance with F.2.2 b), or, if no technical committee was involved,

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the approval procedure set out above shall be repeated if the originating organization decides that changes to the standard are required.

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Annex G
(normative)

Maintenance agencies

G.1 A technical committee or subcommittee developing an International Standard that will require a maintenance agency shall inform the Chief Executive Officer at an early stage in order that an ISO/TMB or IEC Council Board decision may be taken in advance of the publication of the International Standard.

G.2 The ISO/TMB or IEC Council Board designates maintenance agencies in connection with International Standards, including appointment of their members, on the proposal of the technical committee concerned.

G.3 The secretariat of a maintenance agency should be attributed wherever possible to the secretariat of the technical committee or subcommittee that has prepared the International Standard.

G.4 The Chief Executive Officer shall be responsible for contacts with external organizations associated with the work of a maintenance agency.

G.5 The rules of procedure of maintenance agencies shall be subject to ISO/TMB or IEC Council Board approval and any requested delegation of authority in connection with the updating of the International Standard or the issuing of amendments shall be specifically authorized by the ISO/TMB or IEC Council Board.

G.6 Any charges for services provided by a maintenance agency shall be authorized by the council board.

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Annex H
(normative)

Registration authorities

H.1 A technical committee or subcommittee developing an International Standard that will require a registration authority shall inform the Chief Executive Officer at an early stage, in order to permit any necessary negotiations and to allow the technical management board to take a decision in advance of the publication of the International Standard.

H.2 The technical management board designates registration authorities in connection with International Standards on the proposal of the technical committee concerned.

H.3 Registration authorities should be qualified and internationally acceptable bodies; if there is no such organization available, such tasks may be conferred upon the office of the CEO by decision of the technical management board.

H.4 Registration authorities should be required to indicate clearly in their operations that they have been designated by ISO or IEC (for example, by including appropriate wording in the letterhead of the designated body).

H.5 Registration functions undertaken by the registration authority under the provisions of the relevant International Standard shall require no financial contribution from ISO or IEC or their members. This would not preclude, however, the charging for services provided by the registration authority if duly authorized by the council board.

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Annex I
(normative)

Guideline for Implementation of the Common Patent Policy for ITU-T/ITU-R/ISO/IEC

The latest edition of the Guidelines for Implementation of the Common Patent Policy for ITU-T/ITU-R/ISO/IEC are available on the ISO website through the following link (including the forms in Word or Excel formats):

https://www.iso.org/iso/home/standards_development/governance_of_technical_work/patents.htm

They are also available on the IEC website through the following link:

https://www.iec.ch/members_experts/tools/patents/patent_policy.htm

Guidelines for Implementation of the Common Patent Policy for ITU-T/ITU-R/ISO/IEC

Revision 2, effective 26 June 2015
Revision 1, effective 23 April 2012
Revises initial edition of 1 March 2007

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Guidelines for Implementation of the Common Patent Policy for ITU-T/ITU-R/ISO/IEC

Revision 2, effective 26 June 2015

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I.1 Part I – Common guidelines

I.1.1 Purpose

ITU, in its Telecommunication Standardization Sector (ITU-T) and its Radiocommunication Sector (ITU-R), ISO and IEC have had patent policies for many years, the purpose being to provide in simple words practical guidance to the participants in their Technical Bodies in case patent rights matters arise.

Considering that the technical experts are normally not familiar with the complex issue of patent law, the Common Patent Policy for ITU-T/ITU-R/ISO/IEC (hereafter referred to as the "Patent Policy") was drafted in its operative part as a checklist, covering the three different cases which may arise if a Recommendation | Deliverable requires licences for Patents to be practiced or implemented, fully or partly.

The Guidelines for Implementation of the Common Patent Policy for ITU-T/ITU-R/ISO/IEC (hereafter referred to as the "Guidelines") are intended to clarify and facilitate implementation of the Patent Policy, a copy of which can be found in Annex 1 and also on the web site of each Organization.

The Patent Policy encourages the early disclosure and identification of Patents that may relate to Recommendations | Deliverables under development. In doing so, greater efficiency in standards development is possible and potential patent rights problems can be avoided.

The Organizations should not be involved in evaluating patent relevance or essentiality with regards to Recommendations | Deliverables, interfere with licensing negotiations, or engage in settling disputes on Patents; this should be left — as in the past — to the parties concerned.

Organization-specific provisions are contained in Part II of this document. However, it is understood that those Organization-specific provisions shall contradict neither the Patent Policy nor the Guidelines.

I.1.2 Explanation of terms

Contribution: Any document submitted for consideration by a Technical Body.

Free of Charge: The words "Free of Charge" do not mean that the Patent Holder is waiving all of its rights with respect to the Patent. Rather, "Free of Charge" refers to the issue of monetary compensation; i.e., that the Patent Holder will not seek any monetary compensation as part of the licensing arrangement (whether such compensation is called a royalty, a one-time licensing fee, etc.). However, while the Patent Holder in this situation is committing to not charging any monetary amount, the Patent Holder is still entitled to require that the implementer of the relevant Recommendation | Deliverable sign a license agreement that contains other reasonable terms and conditions such as those relating to governing law, field of use, warranties, etc.

Organizations: ITU, ISO and IEC.

Patent: The word "Patent" means those claims contained in and identified by patents, utility models and other similar statutory rights based on inventions (including applications for any of these) solely to the extent that any such claims are essential to the implementation of a Recommendation | Deliverable. Essential patents are patents that would be required to implement a specific Recommendation | Deliverable.

Patent Holder: Person or entity that owns, controls and/or has the ability to license Patents.

Reciprocity: The word "Reciprocity" means that the Patent Holder shall only be required to license any prospective licensee if such prospective licensee will commit to license its Patent(s) for implementation of the same relevant Recommendation | Deliverable Free of Charge or under reasonable terms and conditions.

Recommendations | Deliverables: ITU-T and ITU-R Recommendations are referred to as "Recommendations", ISO deliverables and IEC deliverables are referred to as "Deliverables". The various

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types of Recommendation(s) | Deliverable(s) are referred to as "Document types" in the Patent Statement and Licensing Declaration Form (hereafter referred to as "Declaration Form") attached as Annex 2.

Technical Bodies: Study Groups, any subordinate groups and other groups of ITU-T and ITU-R and technical committees, subcommittees and working groups in ISO and IEC.

I.1.3 Patent disclosure

As mandated by the Patent Policy in its paragraph 1, any party participating[2)] in the work of the Organizations should, from the outset, draw their attention to any known Patent or to any known pending Patent application, either its own or that of other organizations.

In this context, the words "from the outset" imply that such information should be disclosed as early as possible during the development of the Recommendation | Deliverable. This might not be possible when the first draft text appears since at this time, the text might be still too vague or subject to subsequent major modifications. Moreover, that information should be provided in good faith and on a best effort basis, but there is no requirement for patent searches.

In addition to the above, any party not participating in Technical Bodies may draw the attention of the Organizations to any known Patent, either their own and/or of any third-party.

When disclosing their own Patents, Patent Holders have to use the Patent Statement and Licensing Declaration Form (referred to as the "Declaration Form") as stated in Section 4 of these Guidelines.

Any communication drawing the attention to any third-party Patent should be addressed to the concerned Organization(s) in writing. The potential Patent Holder will then be requested by the Director/CEO of the relevant Organization(s) to submit a Declaration Form, if applicable.

The Patent Policy and these Guidelines also apply to any Patent disclosed or drawn to the attention of the Organizations subsequent to the approval of a Recommendation | Deliverable.

Whether the identification of the Patent took place before or after the approval of the Recommendation | Deliverable, if the Patent Holder is unwilling to license under paragraph 2.1 or 2.2 of the Patent Policy, the Organizations will promptly advise the Technical Bodies responsible for the affected Recommendation | Deliverable so that appropriate action can be taken. Such action will include, but may not be limited to, a review of the Recommendation | Deliverable or its draft in order to remove the potential conflict or to further examine and clarify the technical considerations causing the conflict.

I.1.4 Patent Statement and Licensing Declaration Form

I.1.4.1 The purpose of the Declaration Form

To provide clear information in the Patent Information databases of each Organization, Patent Holders have to use the Declaration Form, which is available on the web site of each Organization (the Declaration Form is included in Annex 2 for information purposes). They must be sent to the Organizations for the attention, for ITU, of the Directors of the TSB or the BR or, for ISO or IEC, of the CEOs. The purpose of the Declaration Form is to ensure a standardized submission to the respective Organizations of the declarations being made by Patent Holders.

The Declaration Form gives Patent Holders the means of making a licensing declaration relative to rights in Patents required for implementation of a specific Recommendation | Deliverable. Specifically, by submitting this Declaration Form the submitting party declares its willingness to license (by selecting option 1 or 2 on the Form) /or its unwillingness to license (by selecting option 3 on the Form), according to

2) In the case of ISO and IEC, this includes any recipient of a draft standard at any stage in the standards development process.

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the Patent Policy, Patents held by it and whose licence would be required to practice or implement part(s) or all of a specific Recommendation | Deliverable.

If a Patent Holder has selected the licensing option 3 on the Declaration Form, then, for the referenced relevant ITU Recommendation and ISO or IEC Deliverable, the ITU. ISO and IEC require the Patent Holder to provide certain additional information permitting patent identification.

Multiple Declaration Forms are appropriate if the Patent Holder wishes to identify several Patents and classifies them in different options of the Declaration Form for the same Recommendation | Deliverable or if the Patent Holder classifies different claims of a complex patent in different options of the Declaration Form.

Information contained in a Declaration Form may be corrected in case of obvious errors, such as a typographical mistake in a standard or patent reference number. The licensing declaration contained in the Declaration Form remains in force unless it is superseded by another Declaration Form containing more favourable licensing terms and conditions from a licensee's perspective reflecting (a) a change in commitment from option 3 to either option 1 or option 2, (b) a change in commitment from option 2 to option 1 or (c) un-checking one or more sub-options contained within option 1 or 2.

I.1.4.2 Contact information

In completing Declaration Forms, attention should be given to supplying contact information that will remain valid over time. Where possible, the "Name and Department" and e-mail address should be generic. Also it is preferable, where possible, that parties, particularly multinational organizations, indicate the same contact point on all Declaration Forms submitted.

With a view to maintaining up-to-date information in the Patent Information database of each Organization, it is requested that the Organizations be informed of any change or corrections to the Declaration Form submitted in the past, especially with regard to the contact person.

I.1.5 Conduct of meetings

Early disclosure of Patents contributes to the efficiency of the process by which Recommendations | Deliverables are established. Therefore, each Technical Body, in the course of the development of a proposed Recommendation | Deliverable, will request the disclosure of any known Patents essential to the proposed Recommendation | Deliverable.

Chairmen of Technical Bodies will, if appropriate, ask, at an appropriate time in each meeting, whether anyone has knowledge of patents, the use of which may be required to practice or implement the Recommendation | Deliverable being considered. The fact that the question was asked shall be recorded in the meeting report, along with any affirmative responses.

As long as the Organization concerned has received no indication of a Patent Holder selecting paragraph 2.3 of the Patent Policy, the Recommendation | Deliverable may be approved using the appropriate and respective rules of the Organization concerned. It is expected that discussions in Technical Bodies will include consideration of including patented material in a Recommendation | Deliverable, however the Technical Bodies may not take position regarding the essentiality, scope, validity or specific licensing terms of any claimed Patents.

I.1.6 Patent Information database

In order to facilitate both the standards-making process and the application of Recommendations | Deliverables, each Organization makes available to the public a Patent Information database composed of information that was communicated to the Organizations by the means of Declaration Forms. The Patent Information database may contain information on specific patents, or may contain no such information but rather a statement about compliance with the Patent Policy for a particular Recommendation | Deliverable.

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The Patent Information databases are not certified to be either accurate or complete, but only reflect the information that has been communicated to the Organizations. As such, the Patent Information databases may be viewed as simply raising a flag to alert users that they may wish to contact the entities who have communicated Declaration Forms to the Organizations in order to determine if patent licenses must be obtained for use or implementation of a particular Recommendation | Deliverable.

I.1.7 Assignment or transfer of patent rights

The rules governing the assignment or transfer of Patent rights are contained in the patent statement and licensing declaration forms (see Annexes 2 and 3). By complying with these rules, the Patent Holder has discharged in full all of its obligations and liability with regards to the licensing commitments after the transfer or assignment. These rules are not intended to place any duty on the Patent Holder to compel compliance with the licensing commitment by the assignee or transferee after the transfer occurs.

I.2 Part II – Organization-specific provisions

I.2.1 Specific provisions for ITU

ITU-1 General Patent Statement and Licensing Declaration Form

Anyone may submit a General Patent Statement and Licensing Declaration Form which is available on the web sites of ITU-T and ITU-R (the form in Annex 3 is included for information purposes). The purpose of this form is to give Patent Holders the voluntary option of making a general licensing declaration relative to material protected by Patents contained in any of their Contributions. Specifically, by submitting its form, the Patent Holder declares its willingness to license its Patents owned by it in case part(s) or all of any proposals contained in its Contributions submitted to the Organization are included in Recommendation(s) and the included part(s) contain items for which Patents have been filed and whose licence would be required to practice or implement Recommendation(s).

The General Patent Statement and Licensing Declaration Form is not a replacement for the "individual" (see clause 4 of Part I) Declaration Form, which is made per Recommendation, but is expected to improve responsiveness and early disclosure of the Patent Holder's compliance with the Patent Policy. Therefore, in addition to its existing General Patent Statement and Licensing Declaration in respect of its Contributions, the Patent Holder should, when appropriate (e.g. if it becomes aware that it has a Patent for a specific Recommendation), also submit an "individual" Patent Statement and Licensing Declaration Form:

— for the Patents contained in any of its Contributions submitted to the Organization which are included in a Recommendation, any such "individual" Patent Statement and Licensing Declarations may contain either the same licensing terms and conditions as in the General Patent Statement and Licensing Declaration Form, or more favourable licensing terms and conditions from a licensee's perspective as defined in the "individual" (see clause 4.1 of Part I) Declaration Form; and

— for the Patents that the Patent Holder did not contribute to the Organization which are included in a Recommendation, any such "individual" Patent Statement and Licensing Declarations may contain any of the three options available on the Form (see clause 4.1 of Part I), regardless of the commitment in its existing General Patent Statement and Licensing Declaration.

The General Patent Statement and Licensing Declaration remains in force unless it is superseded by another General Patent Statement and Licensing Declaration form containing more favourable licensing terms and conditions from a licensee's perspective reflecting (a) a change in commitment from option 2 to option 1 or (b) un-checking one or more sub-options contained within option 1 or 2.

The ITU Patent Information database also contains a record of General Patent Statement and Licensing Declarations.

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ITU-2 Notification

Text shall be added to the cover sheets of all new and revised ITU-T and ITU-R Recommendations, where appropriate, urging users to consult the ITU Patent Information database. The wording is:

> "ITU draws attention to the possibility that the practice or implementation of this Recommendation may involve the use of a claimed Intellectual Property Right. ITU takes no position concerning the evidence, validity or applicability of claimed Intellectual Property Rights, whether asserted by ITU members or others outside of the Recommendation development process.
>
> As of the date of approval of this Recommendation, ITU [had/had not] received notice of intellectual property, protected by patents, which may be required to implement this Recommendation. However, implementers are cautioned that this may not represent the latest information and are therefore strongly urged to consult the ITU Patent Information database."

I.2.2 Specific provisions for ISO and IEC

ISO/IEC-1 Consultations on draft Deliverables

All drafts submitted for comment shall include on the cover page the following text:

> "Recipients of this draft are invited to submit, with their comments, notification of any relevant patent rights of which they are aware and to provide supporting documentation."

ISO/IEC-2 Notification

A published document, for which no patent rights are identified during the preparation thereof, shall contain the following notice in the foreword:

> "Attention is drawn to the possibility that some of the elements of this document may be the subject of patent rights. ISO [and/or] IEC shall not be held responsible for identifying any or all such patent rights."

A published document, for which patent rights have been identified during the preparation thereof, shall include the following notice in the introduction:

> "The International Organization for Standardization (ISO) [and/or] International
>
> Electrotechnical Commission (IEC) draws attention to the fact that it is claimed that compliance with this document may involve the use of a patent.
>
> ISO [and/or] IEC take[s] no position concerning the evidence, validity and scope of this patent right.
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> The holder of this patent right has assured ISO [and/or] IEC that he/she is willing to negotiate licences under reasonable and non-discriminatory terms and conditions with applicants throughout the world. In this respect, the statement of the holder of this patent right is registered with ISO [and/or] IEC. Information may be obtained from the patent database available at https://www.iso.org/patents [and/or] http://patents.iec.ch/.
>
> Attention is drawn to the possibility that some of the elements of this document may be the subject of patent rights other than those in the patent database. ISO [and/or] IEC shall not be held responsible for identifying any or all such patent rights."

ISO/IEC-3 National Adoptions

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Patent Declarations in ISO, IEC and ISO/IEC Deliverables apply only to the ISO and/or IEC documents indicated in the Declaration Forms. Declarations do not apply to documents that are altered (such as through national or regional adoption). However, implementations that conform to identical national and regional adoptions and the respective ISO and/or IEC Deliverables, may rely on Declarations submitted to ISO and/or IEC for such Deliverables.

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ANNEX 1

COMMON PATENT POLICY FOR ITU-T/ITU-R/ISO/IEC

The following is a "code of practice" regarding patents covering, in varying degrees, the subject matters of ITU-T Recommendations, ITU-R Recommendations, ISO deliverables and IEC deliverables (for the purpose of this document, ITU-T and ITU-R Recommendations are referred to as "Recommendations", ISO deliverables and IEC deliverables are referred to as "Deliverables"). The rules of the "code of practice" are simple and straightforward. Recommendations | Deliverables are drawn up by technical and not patent experts; thus, they may not necessarily be very familiar with the complex international legal situation of intellectual property rights such as patents, etc.

Recommendations | Deliverables are non-binding; their objective is to ensure compatibility of technologies and systems on a worldwide basis. To meet this objective, which is in the common interests of all those participating, it must be ensured that Recommendations | Deliverables, their applications, use, etc. are accessible to everybody.

It follows, therefore, that a patent embodied fully or partly in a Recommendation | Deliverable must be accessible to everybody without undue constraints. To meet this requirement in general is the sole objective of the code of practice. The detailed arrangements arising from patents (licensing, royalties, etc.) are left to the parties concerned, as these arrangements might differ from case to case.

This code of practice may be summarized as follows:

1 The ITU Telecommunication Standardization Bureau (TSB), the ITU Radio-communication Bureau (BR) and the offices of the CEOs of ISO and IEC are not in a position to give authoritative or comprehensive information about evidence, validity or scope of patents or similar rights, but it is desirable that the fullest available information should be disclosed. Therefore, any party participating in the work of ITU, ISO or IEC should, from the outset, draw the attention of the Director of ITU-TSB, the Director of ITU-BR, or the offices of the CEOs of ISO or IEC, respectively, to any known patent or to any known pending patent application, either their own or of other organizations, although ITU, ISO or IEC are unable to verify the validity of any such information.

2 If a Recommendation | Deliverable is developed and such information as referred to in paragraph 1 has been disclosed, three different situations may arise:

2.1 The patent holder is willing to negotiate licences free of charge with other parties on a non-discriminatory basis on reasonable terms and conditions. Such negotiations are left to the parties concerned and are performed outside ITU-T/ITU-R/ISO/IEC.

2.2 The patent holder is willing to negotiate licences with other parties on a non-discriminatory basis on reasonable terms and conditions. Such negotiations are left to the parties concerned and are performed outside ITU-T/ITU-R/ISO/IEC.

2.3 The patent holder is not willing to comply with the provisions of either paragraph 2.1 or paragraph 2.2; in such case, the Recommendation | Deliverable shall not include provisions depending on the patent.

3 Whatever case applies (2.1, 2.2 or 2.3), the patent holder has to provide a written statement to be filed at ITU-TSB, ITU-BR or the offices of the CEOs of ISO or IEC, respectively, using the appropriate "Patent Statement and Licensing Declaration" Form. This statement must not include additional provisions, conditions, or any other exclusion clauses in excess of what is provided for each case in the corresponding boxes of the form.

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ANNEX 2

PATENT STATEMENT AND LICENSING DECLARATION FORM FOR
ITU-T OR ITU-R RECOMMENDATION | ISO OR IEC DELIVERABLE

Patent Statement and Licensing Declaration for ITU-T or ITU-R Recommendation | ISO or IEC Deliverable

This declaration does not represent an actual grant of a license

Please return to the relevant organization(s) as instructed below per document type:

Director
Telecommunication
Standardization Bureau
International
Telecommunication
Union
Place des Nations
CH-1211 Geneva 20
Switzerland
Fax: +41 22 730 5853
Email: tsbdir@itu.int

Director
Radiocommunication Bureau
International
Telecommunication
Union
Place des Nations
CH-1211 Geneva 20
Switzerland
Fax: +41 22 730 5785
Email: brmail@itu.int

Secretary-General
International Organization
for Standardization
8 chemin de Blandonnet
CH-1214 Vernier, Geneva
Switzerland
Fax: +41 22 733 3430
Email:
patent.statements@iso.org

General Secretary
International Electrotechnical
Commission
3 rue de Varembé
CH-1211 Geneva 20
Switzerland
Fax: +41 22 919 0300
Email: inmail@iec.ch

Patent Holder:

Legal Name _____

Contact for license application:

Name & Department _____

Address _____

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Fax _____

E-mail _____

URL (optional) _____

Document type:

☐ **ITU-T Rec. (*)** ☐ **ITU-R Rec. (*)** ☐ **ISO Deliverable (*)** ☐ **IEC Deliverable (*)**
(please return the form to the relevant Organization)

☐ **Common text or twin text (ITU-T Rec. | ISO/IEC Deliverable (*))** (for common text or twin text, please return the form to each of the three Organizations: ITU-T, ISO, IEC)

☐ **ISO/IEC Deliverable (*)** (for ISO/IEC Deliverables, please return the form to both ISO and IEC)

(*) Number _____

(*) Title _____

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Licensing declaration:

The Patent Holder believes that it holds granted and/or pending applications for Patents, the use of which would be required to implement the above document and hereby declares, in accordance with the Common Patent Policy for ITU-T/ITU-R/ISO/IEC, that (check one box only):

☐ 1. The Patent Holder is prepared to grant a Free of Charge license to an unrestricted number of applicants on a worldwide, non-discriminatory basis and under other reasonable terms and conditions to make, use, and sell implementations of the above document.

Negotiations are left to the parties concerned and are performed outside the ITU-T, ITU-R, ISO or IEC.

Also mark here ___ if the Patent Holder's willingness to license is conditioned on Reciprocity for the above document.

Also mark here ___ if the Patent Holder reserves the right to license on reasonable terms and conditions (but not Free of Charge) to applicants who are only willing to license their Patent, whose use would be required to implement the above document, on reasonable terms and conditions (but not Free of Charge).

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☐ 3. The Patent Holder is unwilling to grant licenses in accordance with provisions of either 1 or 2 above.

In this case, the following information must be provided to ITU, ISO and IEC, as part of this declaration:

— granted patent number or patent application number (if pending);
— an indication of which portions of the above document are affected;
— a description of the Patents covering the above document.

Free of Charge: The words "Free of Charge" do not mean that the Patent Holder is waiving all of its rights with respect to the Patent. Rather, "Free of Charge" refers to the issue of monetary compensation; *i.e.*, that the Patent Holder will not seek any monetary compensation as part of the licensing arrangement (whether such compensation is called a royalty, a one-time licensing fee, etc.). However, while the Patent Holder in this situation is committing to not charging any monetary amount, the Patent Holder is still entitled to require that the implementer of the same above document sign a license agreement that contains other reasonable terms and conditions such as those relating to governing law, field of use, warranties, etc.

Reciprocity: The word "Reciprocity" means that the Patent Holder shall only be required to license any prospective licensee if such prospective licensee will commit to license its Patent(s) for implementation of the same above document Free of Charge or under reasonable terms and conditions.

Patent: The word "Patent" means those claims contained in and identified by patents, utility models and other similar statutory rights based on inventions (including applications for any of these) solely to the extent that any such claims are essential to the implementation of the same above document. Essential patents are patents that would be required to implement a specific Recommendation | Deliverable.

Assignment/transfer of Patent rights: Licensing declarations made pursuant to Clause 2.1 or 2.2 of the Common Patent Policy for ITU-T/ITU-R/ISO/IEC shall be interpreted as encumbrances that bind all successors-in-interest as to the transferred Patents. Recognizing that this interpretation may not apply in all jurisdictions, any Patent Holder who has submitted a licensing declaration according to the Common Patent Policy - be it selected as option 1 or 2 on the Patent Declaration form - who transfers ownership of a Patent that is subject to such licensing declaration shall include appropriate provisions in the relevant transfer documents to ensure that, as to such transferred Patent, the licensing declaration is binding on the transferee and that the transferee will similarly include appropriate provisions in the event of future transfers with the goal of binding all successors-in-interest.

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Patent Information (desired but not required for options 1 and 2; required in ITU for option 3 (NOTE))

No.	Status [granted / pending]	Country	Granted Patent Number or Application Number (if pending)	Title
1				
2				
3				
4				
5				
6				
7				
8				
9				
10				

☐ Check here if additional patent information is provided on additional pages.

NOTE For option 3, the additional minimum information that shall also be provided is listed in the option 3 box above.

Signature (include on final page only):

Patent Holder _____

Name of authorized person _____

Title of authorized person _____

Signature _____

Place, Date

FORM: 26 June 2015

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ANNEX 3

GENERAL PATENT STATEMENT AND LICENSING DECLARATION FORM FOR ITU-T OR ITU-R RECOMMENDATION

ITU
International Telecommunication Union

General Patent Statement and Licensing Declaration for ITU-T or ITU-R Recommendation

This declaration does not represent an actual grant of a license

Please return to the relevant bureau:

Director
Telecommunication Standardization Bureau
International Telecommunication Union
Place des Nations
CH-1211 Geneva 20
Switzerland
Fax: +41 22 730 5853
Email: tsbdir@itu.int

Director
Radiocommunication Bureau
International Telecommunication Union
Place des Nations
CH-1211 Geneva 20
Switzerland
Fax: +41 22 730 5785
Email: brmail@itu.int

Patent Holder:

Legal Name _____

Contact for license application:

Name & Department _____

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Licensing declaration:

In case part(s) or all of any proposals contained in Contributions submitted by the Patent Holder above are included in ITU-T/ITU-R Recommendation(s) and the included part(s) contain items for which Patents have been filed and whose use would be required to implement ITU-T/ITU-R Recommendation(s), the above Patent Holder hereby declares, in accordance with the Common Patent Policy for ITU-T/ITU-R/ISO/IEC (check one box only):

☐ 1. The Patent Holder is prepared to grant a Free of Charge license to an unrestricted number of applicants on a worldwide, non-discriminatory basis and under other reasonable terms and conditions to make, use, and sell implementations of the relevant ITU-T/ITU-R Recommendation.

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Negotiations are left to the parties concerned and are performed outside the ITU-T/ITU-R.

Also mark here ___ if the Patent Holder's willingness to license is conditioned on Reciprocity for the above ITU-T/ITU-R Recommendation.

Also mark here ___ if the Patent Holder reserves the right to license on reasonable terms and conditions (but not Free of Charge) to applicants who are only willing to license their patent claims, whose use would be required to implement the above ITU-T/ITU-R Recommendation, on reasonable terms and conditions (but not Free of Charge).

☐ 2. The Patent Holder is prepared to grant a license to an unrestricted number of applicants on a worldwide, non-discriminatory basis and on reasonable terms and conditions to make, use and sell implementations of the relevant ITU-T/ITU-R Recommendation.

Negotiations are left to the parties concerned and are performed outside the ITU-T/ITU-R.

Also mark here ___ if the Patent Holder's willingness to license is conditioned on Reciprocity for the above ITU-T/ITU-R Recommendation.

Free of Charge: The words "Free of Charge" do not mean that the Patent Holder is waiving all of its rights with respect to the Patent. Rather, "Free of Charge" refers to the issue of monetary compensation; *i.e.*, that the Patent Holder will not seek any monetary compensation as part of the licensing arrangement (whether such compensation is called a royalty, a one-time licensing fee, etc.). However, while the Patent Holder in this situation is committing to not charging any monetary amount, the Patent Holder is still entitled to require that the implementer of the relevant ITU-T/ITU-R Recommendation sign a license agreement that contains other reasonable terms and conditions such as those relating to governing law, field of use, Reciprocity, warranties, etc.

Reciprocity: The word "Reciprocity" means that the Patent Holder shall only be required to license any prospective licensee if such prospective licensee will commit to license its Patent(s) for implementation of the relevant ITU-T/ITU-R Recommendation Free of Charge or under reasonable terms and conditions.

Patent: The word "Patent" means those claims contained in and identified by patents, utility models and other similar statutory rights based on inventions (including applications for any of these) solely to the extent that any such claims are essential to the implementation of the relevant Recommendation | Deliverable. Essential patents are patents that would be required to implement the relevant Recommendation | Deliverable.

Assignment/transfer of Patent rights: Licensing declarations made pursuant to Clause 2.1 or 2.2 of the Common Patent Policy for ITU-T/ITU-R/ISO/IEC shall be interpreted as encumbrances that bind all successors-in-interest as to the transferred Patents. Recognizing that this interpretation may not apply in all jurisdictions, any Patent Holder who has submitted a licensing declaration according to the Common Patent Policy - be it selected as option 1 or 2 on the Patent Declaration form - who transfers ownership of a Patent that is subject to such licensing declaration shall include appropriate provisions in the relevant transfer documents to ensure that, as to such transferred Patent, the licensing declaration is binding on the transferee and that the transferee will similarly include appropriate provisions in the event of future transfers with the goal of binding all successors-in-interest.

Signature:

Patent Holder _____

Name of authorized person _____

Title of authorized person _____

Signature _____

Place, Date

FORM: 26 June 2015

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Annex J
(normative)

Formulating scopes of technical committees and subcommittees

J.1 Introduction

The scope of a technical committee or subcommittee is a statement precisely defining the limits of the work of that committee. As such it has a number of functions:

— it assists those with queries and proposals relating to a field of work to locate the appropriate committee;

— it prevents overlapping the work programmes of two or more ISO and/or IEC committees;

— it can also help guard against moving outside the field of activities authorized by the parent committee.

J.2 Formulation of scopes

Basic rules for the formulation of scopes of technical committees and subcommittees are given in 1.5.10.

The order of the elements of a scope shall be:

— basic scope;

— in the ISO, horizontal functions, where applicable;

— in the IEC, horizontal and/or group safety functions where applicable;

— exclusions (if any);

— notes (if any).

J.3 Basic scope

Scopes of technical committees shall not refer to the general aims of international standardization or repeat the principles that govern the work of all technical committees.

In exceptional cases, explanatory material may be included if considered important to the understanding of the scope of the committee. Such material shall be in the form of “Notes”.

J.4 Exclusions

Should it be necessary to specify that certain topics are outside the scope of the technical committee, these shall be listed and be introduced by the words “Excluded …”

Exclusions shall be clearly specified.

Where the exclusions are within the scope of one or more other existing ISO or IEC technical committees, these committees shall also be identified.

EXAMPLE 1 “Excluded: Those … covered by ISO/TC …”.

EXAMPLE 2 “Excluded: Standardization for specific items in the field of … (ISO/TC …), … (IEC/TC …), etc.”.

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It is *not* necessary to mention self-evident exclusions.

EXAMPLE 3 "Excluded: Products covered by other ISO or IEC technical committees".

EXAMPLE 4 "Excluded: … Specifications for electrical equipment and apparatus, which fall within the scope of IEC committees".

J.5 Scopes of committees related to products

Scopes of committees related to products shall clearly *indicate the field, application area or market sector* which they intend to cover, in order to easily ascertain whether a particular product is, or is not, within that field, application area or market sector.

EXAMPLE 1 "Standardization of … and … used in …".

EXAMPLE 2 "Standardization of materials, components and equipment for construction and operation of … and … as well as equipment used in the servicing and maintenance of …".

The limits of the scope can be defined by *indicating the purpose* of the products, or by *characterizing* the products.

The scope *should not enumerate the types* of product covered by the committee since to do so might suggest that other types can be, or are, standardized by other committees. However, if this is the intention, then it is preferable to list those items which are excluded from the scope.

The *enumeration of aspects* such as terminology, technical requirements, methods of sampling, test methods, designation, marking, packaging, dimensions, etc. suggests a restriction in the scope to those particular aspects, and that other aspects may be standardized by other committees. The aspects of the products to be standardized should therefore not be included in the scope unless it is intended that the scope is limited to those particular aspects.

If the scope makes no mention of any aspect, this means that the subject *in its entirety* is covered by the committee.

NOTE The coverage does not necessarily mean the need for preparing a standard. It only means that standards on any aspect, if needed, will be prepared by that committee and no other.

An example of unnecessary enumeration of aspects is as follows:

EXAMPLE 3 "Standardization of classification, terminology, sampling, physical, chemical or other test methods, specifications, etc.".

Mention of priorities, whether referring to type of product or aspect, shall not appear in the scope since these will be indicated in the programme of work.

J.6 Scopes of committees not related to products

If the scope of a committee is intended to be limited to *certain aspects* which are unrelated, or only indirectly related to products, the scope shall only indicate the aspect to be covered (e.g. safety colours and signs, non-destructive testing, water quality).

The term *terminology* as a possible aspect of standardization should not be mentioned unless this aspect is the only task to be dealt with by the committee. If this is not the case, the mention of terminology is superfluous since this aspect is a logical part of any standardization activity.

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Annex K
(normative)

Project committees

K.1 Proposal stage

A new work item proposal not falling within the scope of an existing technical committee shall be presented using the appropriate form and fully justified (see 2.3.4) by one of the bodies authorized to make new work item proposals (see 2.3.2).

The office of the CEO may decide to return the proposal to the proposer for further development before circulation for voting. In this case, the proposer shall make the changes suggested or provide justification for not making the changes. If the proposer does not make the changes and requests that its proposal be circulated for voting as originally presented, the technical management board will decide on appropriate action. This could include blocking the proposal until the changes are made or accepting that it be balloted as received.

In all cases, the office of the CEO may also include comments and recommendations to the proposal form.

For details relating to justification of the proposal, see Annex C.

It shall be submitted to the secretariat of the technical management board which shall arrange for it to be submitted to all National Bodies for voting.

Proposers are also encouraged to indicate the date of the first meeting of the project committee (see Clause K.3).

If the proposal was not submitted by a National Body, the submission to the National Bodies shall include a call for offers to assume the secretariat of a project committee.

Votes shall be returned within 12 weeks.

Acceptance requires:

— approval by a 2/3 majority of the National Bodies voting;

— a commitment to participate actively by at least five National Bodies that approved the new work item proposal and nominated technical experts.

K.2 Establishment of a project committee

The technical management board shall review the results of voting on the new work item proposal and if the approval criteria are met, shall establish a project committee (the reference number shall be the next available number in the technical committee/project committee sequence).

The secretariat of the project committee shall be allocated to the National Body that submitted the proposal, or the technical management board shall decide on the allocation amongst the offers received if the proposal did not originate from a National Body.

National Bodies that approved the new work item proposal and nominated (a) technical expert(s) shall be registered as P-members of the project committee. National Bodies that approved the new work item proposal but did not make a commitment to participate actively shall be registered as O-members. National Bodies that voted negatively, but nevertheless indicated that they would participate actively if the new

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work item was approved, shall be registered as P-members. National Bodies voting negatively without indicating a wish to participate shall be registered as O-members.

The office of the CEO shall announce to the National Bodies the establishment of the project committee and its membership.

National Bodies will be invited to confirm/change their membership status by informing the office of the CEO.

The secretariat will contact any potential liaison organizations identified in the new work item proposal or in National Body comments thereon and will invite them to indicate whether they have an interest in the work and, if so, which category of liaison they would be interested in. Requests for liaison will be processed according to the existing procedures.

K.3 First meeting of a project committee

The procedure for calling a project committee meeting shall be carried out in accordance with Clause 4, with the exception that a six weeks' notice period may be used if the date of the first meeting was communicated at the time of submission of the proposal.

The chair of the project committee shall be the project leader nominated in the new work item proposal or shall be nominated by the secretariat if no project leader was nominated in the new work item proposal.

The first meeting shall confirm the scope of the new work item. In case revision is necessary (for purposes of clarification but not extension of the scope), the revised scope shall be submitted to the technical management board for approval. It shall also confirm the project plan and in ISO the development track and decide on any substructures needed to carry out the work.

If it is determined that the project needs to be subdivided to produce two or more publications, this is possible provided that the subdivisions of the work lie fully within the scope of the original new work item proposal. If not, a new work item will need to be prepared for consideration by the technical management board.

NOTE Project committees are exempted from the requirement to establish a strategic business plan.

K.4 Preparatory stage

The preparatory stage shall be carried out in accordance with 2.4.

K.5 Committee, enquiry, approval and publication stages

The committee, enquiry, approval and publication stages shall be carried out in accordance with 2.5 to 2.8.

K.6 Disbanding of a project committee

Once the standard(s) is/are published, the project committee shall be disbanded.

K.7 Maintenance of standard(s) prepared by a project committee

The National Body which held the secretariat shall assume responsibility for the maintenance of the standard(s) according to the procedures given in 2.9 unless the project committee has been transformed into a technical committee (see 1.10) in which case the technical committee shall be given the responsibility for the maintenance of the standard.

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